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EXECUTIVE SUMMARY

The Islamic Republic of Iran is a constitutional, theocratic republic in which Shia Muslim clergy and political leaders vetted by the clergy dominate the key power structures. Government legitimacy is based on the twin pillars of popular sovereignty--albeit restricted--and the rule of the supreme leader of the Islamic Revolution. The current supreme leader, Ayatollah Ali Khamenei, was chosen by a directly elected body of religious leaders, the Assembly of Experts, in 1989. Khamenei's writ dominates the legislative, executive, and judicial branches of government. He directly controls the armed forces and indirectly controls internal security forces, the judiciary, and other key institutions. The legislative branch is the popularly elected 290-seat Islamic Consultative Assembly, or Majlis. The unelected 12-member Guardian Council reviews all legislation the Majlis passes to ensure adherence to Islamic and constitutional principles; it also screens presidential and Majlis candidates for eligibility. Mahmoud Ahmadinejad was reelected president in June 2009 in a multiparty election that was generally considered neither free nor fair. There were numerous instances in which elements of the security forces acted independently of civilian control.

Demonstrations by opposition groups, university students, and others increased during the first few months of the year, inspired in part by events of the Arab Spring. In February hundreds of protesters throughout the country staged rallies to show solidarity with protesters in Tunisia and Egypt. The government responded harshly to protesters and critics, arresting, torturing, and prosecuting them for their dissent. As part of its crackdown, the government increased its oppression of media and the arts, arresting and imprisoning dozens of journalists, bloggers, poets, actors, filmmakers, and artists throughout the year. The government's suppression and intimidation of voices of opposition continued at a rapid pace at year's end.

The most egregious human rights problems were the government's severe limitations on citizens' right to peacefully change their government through free and fair elections, restrictions on civil liberties, and disregard for the sanctity of life through the government's use of arbitrary detention, torture, and deprivation of life without due process. The government severely restricted freedoms of speech and the press (including via the Internet), assembly, association, movement, and religion. The government committed extrajudicial killings and executed persons for criminal convictions as juveniles, on minor offenses,

and after unfair trials, sometimes in public or group executions. Security forces under the government's control committed acts of politically motivated violence and repression, including torture, beatings, and rape. The government administered severe officially sanctioned punishments, including amputation and flogging. Security forces arbitrarily arrested and detained individuals, often holding them incommunicado.

Other human rights abuses included acts of violence by vigilante groups with ties to the government, such as the Basij militia. Prison conditions remained poor, and several prisoners died during the year as a result. There were few examples of judicial independence or fair public trials. Authorities held numerous political prisoners and continued to crack down on women's rights activists, ethnic minority rights activists, student activists, religious minorities, and environmental activists. The government severely restricted the right to privacy. Authorities denied admission to or expelled hundreds of university students whose views were deemed unacceptable by the regime; professors faced expulsion on similar grounds. Official corruption and a lack of government transparency persisted. Violence and legal and societal discrimination against women, children, ethnic and religious minorities, and lesbian, gay, bisexual, and transgender (LGBT) persons were extant. Incitement to anti-Semitism and trafficking in persons remained problems. The government severely restricted workers' rights and arrested numerous union leaders as the number of protests increased during the year. Child labor remained a serious problem.

Note: The United States does not have an embassy in Iran. This report draws heavily on non-U.S. government sources.

Section 1. Respect for the Integrity of the Person, Including Freedom from:

a. Arbitrary or Unlawful Deprivation of Life

There were reports that the government and its agents committed multiple acts of arbitrary or unlawful killings, including those caused by torture, denial of medical treatment, and beatings (see also section 1.e., Political Prisoners and Detainees). The government made only limited attempts to investigate cases, if at all. There were several extrajudicial killings by government Basij forces surrounding the February protests in support of the Arab Spring uprisings. Basij forces reportedly killed protesters during rallies and while pursuing protesters after they had dispersed.

On February 14, security forces killed two university students, Saneh Jaleh and Mohammad Mokhtari, during a rally in Tehran to demonstrate solidarity with antigovernment protesters in Tunisia and Egypt. According to press reports, both were shot by men on motorcycles, which friends indicated was a hallmark of the Basij. Progovernment news sources contended that Jaleh and Mokhtari were both members of the Basij and were killed by the terrorist group Mujahedin-e Khalq (MEK). Friends and relatives of Jaleh and Mokhtari denied the accusations.

On March 15, Basij forces in Tehran shot and killed university student Behnoud Ramezani. According to news reports and nongovernmental organizations (NGOs), two initial forensic reports described the cause of death as "multiple blows to the head by a hard object." The final cause of death was announced as a result of the "explosion of a hand grenade." An eyewitness who provided his account to the opposition news site Daneshjoo stated that Basij forces hit Ramezani with an "electric shocker." The witness reported that Ramezani's neck and hand were broken and his right thigh was crushed.

On August 25, the opposition Web site Roozonline published an interview with Behrang Soudbakhsh, the son of Abdolreza Soudbakhsh, a doctor killed in 2009 after examining rape victims at Kahrizak Prison. This was the first time that the family came forward about the killing due to fear of reprisals from authorities. According to the son, the elder Soudbakhsh was under pressure to remain silent about those who died under torture and was shot by men on a motorcycle as he left his office. The son stated that authorities told his father to report that the victims of Kahrizak had meningitis, even though he had concluded they died as a result of torture. Behrang claimed his father was planning to leave the country the night of his death and suggested he was killed to prevent him from revealing more information. The elder Soudbakhsh had given an interview to Deutsche Welle's Persian network a few weeks before his death in which he mentioned the rapes. At the time of his death, officials denied Soudbakhsh's killing had anything to do with his knowledge of events at Kahrizak.

There were developments in one case from a previous year. On February 6, according to the online legal news site The Jurist, the government executed two unidentified men convicted of torturing and killing three university students and protesters-- Amir Javadifar, Mohammed Kamrani, and Mohsen Rouhalemini--at Kahrizak Prison in 2009. A criminal case against former Tehran prosecutor general Saeed Mortazavi for his involvement was reportedly continuing at year's end, although Mortazavi announced on July 18 that he had effectively been acquitted of all charges, explaining that the Civil Servants Court had decided not to prosecute him. Legal claims filed against Mortazavi by the families of those killed also remained pending. During the year Mortazavi continued to serve as the head of the governmental antismuggling task force.

According to the Iran Human Rights Documentation Center (IHRDC), the government executed 659 persons during the year, many after trials that were conducted in secret or did not adhere to basic principles of due process. Some observers noted a figure as low as 277, while other credible NGOs reported the number of executions, including those conducted in secret, was more than 700. The UN special rapporteur for human rights in Iran noted in his October report that at least 83 persons, including three political prisoners, were known to have been executed in January alone. Human rights activists reported that the government executed an average of two persons a day during the first six months of the year. Authorities did not release statistics on the implementation of death sentences, the names of those executed, or the crimes for which they were found guilty. Exiles and human rights monitors alleged that many persons supposedly executed for criminal offenses such as narcotics trafficking were actually political dissidents. Executions for drug convictions constituted the majority of capital punishment cases in the country. The law criminalizes dissent and also applies the death penalty to offenses such as "attempts against the security of the state," "outrage against high-ranking officials," "enmity towards god" (moharebeh), and "insults against the memory of Imam Khomeini and against the supreme leader of the Islamic Republic."

While the law does not explicitly stipulate the death penalty for the offense of apostasy, courts have administered such punishment based on their interpretation of religious fatwas. In September 2010 a lower court convicted Christian pastor Youcef Nadarkhani of "apostasy" and issued a death sentence. The case was under Supreme Court review at year's end. According to Philip Alston, the UN special rapporteur on extrajudicial, summary, or arbitrary executions, moharebeh is "imposed for a wide range of crimes, often fairly ill defined and generally having some sort of political nature." The October report of the UN secretary-general on the human rights situation in the country stated that more than 20 persons charged with moharebeh were executed during the year. In a June 22 interview with the semiofficial Iranian Student News Agency (ISNA), Mashad prosecutor Mahmoud Zoghi confirmed the "high number of unannounced executions" carried out in Vakilabad between March and May.

On January 24, the government executed Kurdish political prisoners Jafar Kazemi, an editor and publisher of academic books at Amir Kabir University and 2009 election protester, and Mohammad Ali Haj Aghaie, also an election protester, after they reportedly refused to give televised confessions on January 17 in Evin Prison. The two were convicted of moharebeh for participating in the 2009 protests as well as chanting slogans and distributing banners for the MEK. Authorities reportedly did not inform Kazemi's wife or lawyer prior to the execution. Authorities reportedly tortured the prisoners physically and psychologically. Their interrogators allegedly threatened to arrest his wife and children if they did not confess. According to their lawyer, the government failed to provide access to the case files during the trial. Aghaie was a long-standing political activist who had been previously convicted for his participation in the 1980s government opposition.

On January 29, authorities executed Zahra Bahrami, an Iranian-Dutch citizen. Bahrami was hanged on reportedly trumped-up charges of drug smuggling after being arrested during the 2009 Ashura protests. Bahrami was also charged with moharebeh, "acting against national security," and "propaganda against the establishment," but she was not tried on these charges. The government denied Bahrami access to Dutch consular officials. According to the International Campaign for Human Rights in Iran (ICHR), her lawyer was not informed of the execution until after it had occurred.

During the year the government practiced public executions and group executions.

Public hangings using cranes or off of overpasses in the presence of onlooking crowds were common practice throughout the year. Amnesty International (AI) reported that authorities acknowledged public executions of at least 28 persons during the first six months of the year. The UN special rapporteur on human rights in Iran noted the release of video footage of the

public executions of three persons convicted of kidnapping and rape in Azadi Square of Kermanshah on July 19. Footage showed a large crowd in attendance, including children.

According to the ICHRI, authorities conducted group executions at several prisons throughout the country, including Vakilabad, Birjand, Taybad, Karoon, Ghezel Hessar, Urmiya, and Qom, among others. The ICHRI reported that officials at Vakilabad Prison carried out group executions on at least 10 occasions, putting to death at least 118 persons. All those executed had been charged with drug-related crimes. According to ICHRI sources, group executions inside Vakilabad were carried out by hanging in a roofless hallway leading to the prison's visitation hall. The executions were secret, without the knowledge or presence of the prisoners' lawyers or families. Sources also stated that group death sentences of this nature were usually issued at the end of unfair trials that often lasted only minutes.

The government reportedly executed at least four persons for crimes committed when they were minors. For example, on May 5, according to AI, the government executed 16-year-old Hashem Hamidi, a member of the Ahvazi Arab minority, along with four men in Karoun Prison in Ahvaz. Ahvazi Arab sources said the men were arrested after participating in demonstrations on April 15, but the charges against them were not known. Hamidi's trial, in the absence of his lawyer, reportedly took only 10 minutes. The UN secretary-general noted in his September report that more than 100 juveniles were on death row in the country.

Adultery remained punishable by death by stoning, but there were no reported executions by stoning during the year. The law provides that a victim of stoning is allowed to go free if he or she escapes. It is much more difficult for women to escape as they are buried to their necks whereas men are buried only to their waists. According to AI, death sentences by stoning continued to be passed, but no stonings were known to be carried out. AI reported that at least 15 prisoners, mostly women, remained at risk of stoning.

Iranian forces regularly bombarded areas along the Iran-Iraq Kurdish border, targeting purported terrorist activities. The Iranian shelling resulted in civilian casualties. For example, on July 28, shelling near the town of Sidakan killed a 13-year-old boy. State media rarely provided reporting or figures on the number killed or injured.

b. Disappearance

There were reports of politically motivated abductions during the year. Plainclothes officers or security officials often seized journalists and activists without warning, and government officials refused to acknowledge the disappearance or provide any information as to the fate or whereabouts of those taken. In other cases authorities detained individuals incommunicado for several days or longer before permitting them to contact family members (see section 1.d.). Families of executed prisoners did not always receive notification of their deaths (see section 1.a.).

On June 29, according to a Human Rights Activists News Agency (HRANA) report, Green Movement activist Mohsen Kashefzadeh Saraie disappeared. Intelligence Ministry officials reportedly summoned Kashefzadeh over the phone for questioning two days prior to his disappearance. He did not turn himself in as requested and disappeared two days later. Authorities refused to disclose any information on Kashefzadeh's whereabouts, despite requests from his family, and at year's end his fate was unknown.

On July 31, according to Human Rights Watch (HRW), plainclothes security forces arrested prominent rights activist and blogger Kouhyar Goudarzi, along with his friends Behnam Ganji and Nahal Sahabi, at Ganji's home. Authorities reportedly took Goudarzi to an undisclosed location and later transferred him to Evin Prison, where his friends were being held, but refused to acknowledge his arrest or detention. Friends and family requested information from the Tehran Prosecutor's Office but were told there was no file regarding Goudarzi's case. Ganji and Sahabi were released four weeks after their arrest and shared the details of their arrest and detention with their families and in an interview with the ICHRI. Both committed suicide shortly after their release, reportedly due to the trauma they suffered in detention. Security forces had arrested Goudarzi several times since 2006. In June 2010 Branch 26 of the Revolutionary Court convicted him of "propaganda against the regime" and other security-related offenses, sentencing him to one year in prison, which he completed. Despite this, Goudarzi remained in prison at year's end.

There were a few developments in cases from previous years.

On September 5, according to AI, authorities reportedly released Sourena Hashemi, who had been arrested with Alireza Firouzi for their role in exposing the sexual abuse of a fellow student at Zanzan University in 2008. Their January 2010 arrest was not officially acknowledged for more than six weeks. Firouzi reportedly remained in prison at year's end.

On September 13, authorities reportedly released Fayzolah Arabsorki, a former deputy minister of commerce, from prison. According to the opposition Web site Kaleme.com, prison authorities presented him with release papers and then summoned him back to prison four days later to complete his sentence.

In 2009 unidentified persons arrested Arabsorki, a member of the central body of the reformist Islamic Revolution Mujahedin Organization, without presenting a warrant or identifying themselves as police. Arabsorki reappeared in 2010 at Evin Prison. On May 26, he and 25 other prominent political prisoners wrote a letter to the chairman of the governmental Central Board for the Sound Implementation of the Law Regarding the Respect for Contingent Freedoms and Protecting Citizen Rights. The letter called for an investigation into the human rights abuses they and other prisoners had endured in prison. The government initiated no known investigation.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment

The constitution and law prohibit torture, but there were numerous credible reports that security forces and prison personnel tortured and abused detainees and prisoners. There were no credible reports of government investigations into reports of torture or cruel, inhuman, or degrading treatment or punishment. The government repeatedly defended its use of flogging and amputation as "punishment," not torture. On March 1, the UN special rapporteur on torture and other cruel, inhuman, or degrading treatment or punishment noted with concern the various commonly applied methods of mistreatment, including beatings, stress positions, the denial of medical attention, and prolonged solitary confinement. He noted that such mistreatment affected mainly human rights defenders, journalists, social activists, political activists, religious groups, and individuals associated with various minority groups, including members of the LGBT community. On October 18, members of the UN Human Rights Council (UNHRC) criticized the government for the use of inhuman punishments such as flogging.

Common methods of torture and abuse in prisons included prolonged solitary confinement with extreme sensory deprivation (sometimes called "white torture"), beatings, rape and sexual humiliation, long confinement in contorted positions, kicking detainees with military boots, hanging detainees by the arms and legs, threats of execution, burning with cigarettes, being forced to eat feces, pulling out toenails, sleep deprivation, and severe and repeated beatings with cables or other instruments on the back and on the soles of the feet. To intensify abuse perpetrators reportedly soaked prisoners before beating them with electric cables, and there were some reports of electric shocks to sexual organs. Prisoners also reported beatings on the ears, inducing partial or complete deafness; blows in the area around the eyes, leading to partial or complete blindness; and the use of poison to induce illness. There were increasing reports of severe overcrowding in many prisons and repeated denials of medical care for prisoners.

Some prison facilities, including Evin Prison in Tehran, were notorious for cruel and prolonged torture of political opponents of the government. Authorities also maintained unofficial secret prisons and detention centers outside the national prison system where abuse reportedly occurred. The government reportedly used "white torture" especially on political prisoners, often in detention centers outside the control of prison authorities, including Section 209 of Evin Prison, which was reportedly under the control of the intelligence services, according to news sources.

On September 3, according to AI and the UN special rapporteur for human rights in Iran, plainclothes officers arrested activist, journalist, and member of the Azeri minority, Faranak Farid, while she was shopping in the northwestern city of Tabriz, beating her so severely that she temporarily lost hearing in one ear and lost the ability to move one of her arms. Farid, a member of the One Million Signatures campaign (see section 6, Women), had most recently been involved in environmental protests. After beating and interrogating her, authorities allegedly forced her to sign a confession that she could not read because they had taken away her glasses. At year's end she remained detained in the Tabriz Central Prison, facing charges of

“insulting the supreme leader,” “propaganda against the regime,” and “acting against national security.” As of September 15, according to AI and the special rapporteur, Farid’s requests to see a physician had not been met, and she had been allowed to meet only once with a visitor, her sister, for 45 minutes.

During the year there were several reports of government agents facilitating or encouraging the rape of prisoners and detainees. On June 24, based on letters smuggled from prison and information on Kaleme.com, The Guardian published an article detailing the extent of sexual abuse in the prison system. According to the letters, prison guards distributed condoms to incarcerated criminals to encourage systematic rape of opposition prisoners. Mehdi Mahmoudian, an outspoken member of Iran’s Participation Front, a reformist political party, wrote, “[R]ape has become a common act and acceptable.” An unnamed family member reportedly stated, “Criminals are repeatedly seen with condoms in hand, hunting for their victims.”

On June 10, the IHRDC released a report entitled *Surviving Rape in Iran’s Prisons*, which provided witness statements from five former prisoners, two women and three men, who suffered rape and other sexual abuse during incarceration in previous years. At least three of the rape victims were politically active, and four were raped by prison guards. In a May 30 interview with IHRDC, a man named “Sorrour” discussed his arrest and rape by prison guards, allegedly in retaliation for fighting with his father, a member of the Basij. Sorrour left the country in 2009.

There were a few developments in cases from previous years.

On May 8, authorities released *Kayhan* columnist, blogger, and documentary filmmaker Mohammad Nourizad, who had been detained in 2009 and reportedly beaten in May 2010, causing what the prison physician classified as a serious head injury that affected his eyesight.

On July 26, Evin Prison authorities added a year to Mohammed Davari’s five-year sentence. In 2010, according to various sources, authorities tortured and abused Davari, who served as presidential candidate Mehdi Karroubi’s chief of staff and editor in chief of the Saham News Web site, to force him to cast doubt publicly on Karroubi’s 2009 claim that postelection prisoners had been raped. Davari won the International Press Freedom award from the Committee to Protect Journalists (CPJ) for his work exposing abuse and rape in the now-closed Kahrizak Prison. Relatives told the ICHRI that Davari’s health was deteriorating in prison and that he was suffering from severe depression.

On March 18, Ebrahim Mehtari reported that two men, one of whom was Iranian, accosted him outside his home in Paris, tying a rope around his neck and stabbing him several times. Exactly one year prior, Mehtari participated in a UN panel to relate the abuse and torture, including sodomy, he endured during his 2009 detention in Iran.

Some judicially sanctioned corporal punishment constituted cruel and inhuman punishment, including amputation for multiple-theft offenses, and lashings/floggings. On March 16, in connection with an amputation case in the province of Khurasan, the deputy judiciary head stressed that the amputation of limbs is part of the punishment to be meted out to particular offenders. On June 1, Mohammad Javad Larijani, secretary general of the governmental High Council for Human Rights, was quoted by the ISNA as stating that flogging was not torture but rather a punishment and penalty.

On December 11, the Fars Province public relations office reported that the Fars Province Courthouse carried out a foot amputation ruling (Hadd) on Mohammadhossein Q., convicted of armed robbery. His hand had been amputated for the same crime in 2007; however, the foot amputation was delayed for unknown reasons.

On October 9, according to online opposition news outlet Rah-e Sabz, a masked prison guard reportedly carried out a sentence of 74 lashes against journalist and student activist Peyman Aref for writing an “insulting” letter to President Ahmadinejad. The lashing was conducted as a Hadd flogging, which is the harsher type of flogging reserved for the most serious crimes, and it produced serious injuries. In the letter Aref protested the “penalty point” system for politically active university students (see section 2.a., Academic Freedom and Cultural Events), under which his education was curtailed. Aref’s March 2010 sentence for “propaganda against the regime” also included one year in prison, which he completed, and a lifetime ban on journalism and political party membership.

Prison and Detention Center Conditions

Prison conditions were harsh and life threatening. Prisoners committed suicide as a result of the harsh conditions, solitary confinement, and torture to which they were subjected. Prison authorities often refused medical treatment for injuries prisoners suffered at the hands of their torturers and from the poor sanitary conditions of prison life. Hunger strikes in protest of their treatment were common. Prisoners and their families often wrote letters to authorities, and in some cases to UN bodies, to highlight and protest their treatment. As a result of the letters, prison officials often beat prisoners and revoked their visitation and telephone privileges.

In a July 13 letter, imprisoned journalist Issa Saharkhiz accused authorities of using harsh prison conditions to slowly kill political prisoners (see section 1.e., Political Prisoners). There were reports of prison guards and other inmates brutalizing and raping prisoners, especially political prisoners, with impunity (see also section 1.c., Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment). In a May 9 letter, Mehdi Mahmoudian, convicted for “collusion against the government” after participation in the 2009 protests, wrote that rape of young men in Rejai Shahr Prison was “an accepted and common everyday matter” completely ignored by prison officials. Authorities transferred Mahmoudian to solitary confinement without explanation on June 8. Prisoners were frequently subjected to harassment and discrimination. Many prisoners were held in solitary confinement or were denied adequate food or medical care as a way to force confessions.

Overcrowding was a significant problem, forcing many prisoners to sleep on the floor, in the hallways, and even outside in the prison yard. There were reports of food being tampered with to create stomach illness among the prisoners. There were frequent water shortages and sanitation problems. Prisoners were severely restricted in their access to fresh air and often were granted permission to go outside only during the hottest or coldest times of the day. There were reports of officials sending prisoners outside without clothes for prolonged periods of time. Ventilation in the prison was lacking, with the stench of poor sanitation and water facilities permeating the cells. Prisoners were often subjected to sensory deprivation, with either 24-hour light or complete darkness.

On March 15, according to various NGOs, at least nine and as many as 150 prisoners were killed in clashes between prisoners and prison guards at the overcrowded Qezel Hesar Prison outside Tehran. At the same time, the head of the prison system, Gholamhossein Esmaili, said a judicial investigation had been opened; however, no reports had been released by year’s end. Prison authorities stated that the riot began when death row inmates and drug traffickers committed arson and attacked guards in an attempt to escape. However, human rights advocates told AI that the prisoners were protesting poor conditions and attempts to transfer some inmates for execution. On March 16, state media reported that 14 persons had died, including at least nine prisoners, and 33 had been injured. On March 19, HRANA reported that telephone privileges for prisoners had been cut off until further notice.

On July 15, according to human rights and democracy advocacy groups, Sahar Hadadi committed suicide to protest conditions and brutal mistreatment of women in Gohardasht Prison in the city of Ray. Prison guards reportedly regularly used electric batons and chokers to abuse female prisoners. Hadadi was incarcerated for unknown reasons.

In a July 10 interview on Radio Farda, Ali Tabarzadi, son of prominent political activist Heshmatollah Tabarzadi, stated that Rejai Shahr prison authorities were not providing adequate medical care for his father. The senior Tabarzadi had been transferred to the prison infirmary because of his heart disease but needed to seek treatment outside prison. Heshmatollah Tabarzadi, head of the banned opposition party Iran Democratic Front, was detained by Intelligence Ministry officials in Tehran after the 2009 Ashura protests and sentenced to eight years’ imprisonment. He had not been allowed to leave prison since his arrest.

On March 3, reformist news outlet Radio Zamaneh reported that prisons head Esmaili told a gathering of prosecutors that the total prison population was 220,000 inmates, which included 70,000 prisoners awaiting sentencing. The official capacity of the prison system is approximately 85,000. Esmaili also reportedly stated that the number of prisoners in the country had risen by 55,000 since he became head of prisons 18 months earlier. In September he stated that the escalating number of prisoners was causing a crisis, with regular two-month budget shortfalls being common. On April 30, Younes Mousavi, a

member of the parliament's judicial commission, stated that prisons were so overcrowded that some prisoners were obliged to sleep in stairways. Mousavi also stated that the annual budget of the Prisons Organization did not cover the cost of food and clothing for prisoners.

On April 8, the ICHRI published an open letter from Seyed Hashem Khastar, a retired teacher and prisoner of conscience, to the judiciary head and the intelligence minister, detailing conditions inside Mashad's Vakilabad Prison. Khastar wrote that his ward held more than 700 prisoners, four times its capacity, and there were as many as 60 individuals in the room where he slept although its official capacity was 15. Khastar was released September 11 on 1.1 million toman (\$1,100) bail.

During the year many prisoners, especially political prisoners, went on hunger strikes to protest prison conditions. The health of some prisoners on hunger strikes deteriorated quickly, but authorities did not respond quickly with medical help.

On June 20, the ICHRI reported that prison authorities allowed Hangameh Shahidi medical leave for the first time in eight months (see section 2.a.).

There were reports of juvenile offenders detained with adult offenders. Pretrial detainees occasionally were held with convicted prisoners. Political prisoners were often held in separate prisons or wards--such as Evin Prison, especially wards 2A, 209, 240, and 350, and ward eight of Gohardasht Prison, known as the Islamic Republic Guard Corps (IRGC) ward--or in isolation for long periods of time. Human rights activists and international media also reported cases of political prisoners confined with violent felons and drug dealers.

On July 21, the opposition news site Jaras reported that a new system for obtaining furloughs had been posted on the walls of all the country's prisons. According to the system, prison authorities would allocate points based on good conduct. For example, "cooperating in establishing order or preventing violations" merited 20 points every month and "participating in Friday prayers and other religious ceremonies" earned a prisoner 30 points per month. Most prisoners required 1,000 points to obtain a furlough, but male prisoners over age 60, women over age 55, women who head households, women who have children under 10, and all veterans required only 150 points. Jaras noted that a number of political prisoners had yet to enjoy even one furlough, even though they belonged to the group that required only 150 points.

Prison conditions for women were generally at least as poor as those for men. On May 10, Radio Farda reported that the families of female prisoners transferred to Gharchak Prison south of Tehran had written to the head of the Islamic Human Rights Commission, Mohammad Hassan Ziaeeefar, asking him to immediately address the prison's "intolerable conditions." In a letter published on the Kaleme Web site, the families stated the lives of 600 female prisoners were at risk. The prisoners reportedly lived in a hall without beds or access to basic washing facilities and sanitation, and prison authorities beat them when they protested their conditions.

The government did not permit independent monitoring of prison conditions by any outside groups, including UN groups or special rapporteurs. Prisoners generally had access to weekly visitors, but this privilege was often revoked, along with telephone and other correspondence privileges. According to former prisoner accounts, prison officials often returned unsent letters to prisoners months after they thought they were sent to their families. Prisoners were able to submit complaints to judicial authorities, but often with censorship and retribution for doing so. Authorities did not initiate credible investigations into allegations of inhuman conditions. There was no information on whether the penal system employed prison ombudspersons and no indication that any steps were taken to improve recordkeeping or use alternative sentencing for nonviolent offenders. To the contrary, the authorities utilized secret detention facilities, frequently held prisoners incommunicado, and mixed violent and nonviolent offender populations.

d. Arbitrary Arrest or Detention

Although the constitution prohibits arbitrary arrest and detention, these practices continued during the year.

Role of the Police and Security Apparatus

Several agencies share responsibility for law enforcement and maintaining order, including the Ministry of Intelligence and Security, Law Enforcement Forces under the Interior Ministry, and IRGC. The Basij and informal groups known as the Ansar-e Hizballah (Helpers of the Party of God) were aligned with extreme conservative members of the leadership and acted as vigilantes. However, the Basij also served in the IRGC ground forces. While some Basij units received formal training, many units were disorganized and undisciplined. During government-led crackdowns on demonstrations, the Basij were primarily responsible for the violence against the protesters.

The security forces were not considered fully effective in combating crime, and corruption and impunity were problems. Regular and paramilitary security forces such as the Basij committed numerous serious human rights abuses, but there were no transparent mechanisms to investigate security force abuses and no reports of government actions to reform the abusers.

Arrest Procedures and Treatment While in Detention

The constitution and penal code require a warrant or subpoena for an arrest and state that an arrested person must be informed of charges within 24 hours. Authorities rarely followed these procedures in practice. Authorities held detainees, at times incommunicado, often for weeks or months without charge or trial, frequently denying them prompt contact with family or timely access to legal representation. In practice there was neither a time limit for detention nor judicial means to determine the legality of the detention. According to the law, the state is obligated to provide indigent defendants with attorneys only for certain types of crimes. The courts set prohibitively high bail, even for lesser crimes, and in many cases courts did not set bail. Authorities often compelled detainees and their families to submit property deeds to post bail. Prisoners released on bail did not always know how long their property would be retained or when their trials would be held, which effectively silenced them for fear of losing their families' property.

The intelligence arm of the IRGC reportedly conducted arrests during the year, sometimes without a warrant. In addition, security forces executed general warrants to arrest protesters or those perceived as opponents of the government. The use of these general warrants precluded the need for individual warrants.

Incommunicado arrest and detention was a common practice. For example, Farzad Madadzadeh was reportedly held incommunicado during the year, and Kouhyar Goudarzi has been held incommunicado since July 31 (see sections 1.a. and 1.e.).

In an October 11 interview with the ICHRI, the wife of imprisoned journalist and member of the Iran Freedom Movement Ali Akrami stated she had no information on his whereabouts since his October 6 arrest (see section 2.a.). According to press reports, Akrami was later released on bail on October 29, although he had been incommunicado during his entire three-week detention.

The government reportedly put individuals under house arrest without due process to restrict their movement and communication. In mid-February authorities suddenly moved former presidential candidates Mehdi Karroubi and Mir Hossein Mousavi and their wives, Fatemeh Karroubi and Zahra Rahnavard, respectively, to an undisclosed location and held them incommunicado for several weeks. They had been under de facto house arrest since 2010, and all but Fatemeh Karroubi remained so at year's end, apparently in response to their calls for protests in solidarity with prodemocracy activists. According to the September report by the UN special rapporteur on human rights in Iran, the Mousavis were unable to communicate freely with family or friends, as authorities had destroyed or removed all communication devices from the Mousavis' home. The Karroubis reportedly faced similar conditions, and authorities also had removed the Karroubis' television and books. Mehdi Karroubi was reportedly allowed to go outside of his home only once, for 10 minutes. Radio Zamaneh reported November 10 that Karroubi had been moved to "a more appropriate location." Karroubi's son said Intelligence Ministry officials were also living in Karroubi's new apartment and that authorities were refusing to allow Karroubi's wife to stay with her husband. Domestic media reported that security officials raided Mousavi's office twice during the week of November 6, confiscating books, computers, and personal items. The special rapporteur also noted that members of both families had been harassed, intimidated, and/or briefly detained.

Arbitrary Arrest: Arbitrary arrest was a common practice and was used by authorities to spread fear and deter activities deemed against the regime. Often plainclothes officers arrived unannounced at homes or offices and conducted raids without warrants or other assurances of due process, confiscating private documents, passports, computers, electronic media, and other personal items and arresting individuals. Once in detention centers, individuals languished for extended periods without charges or trials and in many circumstances were delayed in communicating their whereabouts to their families. Denial of legal access during this time was common, as was the imposition of travel bans if and when the individuals were released. The September 15 UN secretary-general's report on the situation of human rights in the country noted with concern the use of solitary confinement, lack of access to lawyers, and use in court of confessions made under duress in pretrial detention.

On January 30, authorities at Tehran Airport detained Omid Kokabi, a postdoctoral student studying nuclear physics in the United States. Kokabi, a Sunni and member of the Turkmen ethnic minority, was accused of acting against national security through contacts with a "hostile country" and illegitimate earnings based on his scholarship. On July 10, according to media sources, he wrote a letter to the head of the judiciary protesting his arrest, the 36 days he spent in solitary confinement, and having been forced to make false confessions. Kokabi reportedly was not granted access to his lawyer at any time during his imprisonment. According to Reuters, his lawyer said the trial began on October 4. There was no further information at year's end.

On February 9, plainclothes police arrested Taghi Rahmani, a writer, journalist, human rights defender, and husband of imprisoned human rights activist Narges Mohammadi (see section 5), five days ahead of a planned antiregime demonstration. According to the Observatory for the Protection of Human Rights Defenders, individuals entered Rahmani's apartment without showing identification cards or an arrest warrant, searched his residence, and confiscated documents. Rahmani was released on May 15 after posting bail of 150 million toman (approximately \$150,000). On September 21, authorities imposed a travel ban on Rahmani, preventing him from leaving the country.

There were a few developments in cases from previous years. On April 17, Branch 26 of Tehran's Revolutionary Court sentenced journalist Nazanin Khosravani to six years in prison for "assembly and colluding to act against national security" and "propaganda against the regime." Khosravani was arrested in November 2010. In mid-March, according to Kaleme.com, she had secured bail of 6.5 million toman (\$6,500). According to the Web site, her lawyer stated that they would appeal the sentencing; there was no update on the appeal at year's end.

In December 2010, in return for bail of 800 million toman (\$800,000), authorities released former government spokesman Abdollah Ramezanzadeh early from his six-year sentence for "acting against national security." In 2009 police arrested and seriously beat Ramezanzadeh following a letter he cowrote to the head of the judiciary calling for the prosecution of IRGC officials for their role in the 2009 election and its aftermath. However, on February 26, the Green Voice of Freedom Web site reported that Ramezandadeh was rearrested following a scuffle with security forces, and at year's end he reportedly remained in ward 350 of Evin Prison.

On August 20, a revolutionary court sentenced two of the three U.S. citizen hikers arrested by border guards on the Iran-Iraq border in 2009 to eight years in prison for espionage and entering the country illegally. However, on September 21, authorities released the two on 500 million toman (\$500,000) bail each, the same as the third hiker who was released in September 2010. On September 27, authorities detained the hikers' lawyer, Masoud Shafii, at the airport, confiscated his passport, and prevented him from travel. Judiciary officials questioned him for several hours about the American hikers and released him the following day without filing any charges. The government banned Shafii from travelling abroad.

At year's end Arash and Kamiar Alaei, physicians specializing in the prevention and treatment of HIV/AIDS who were found guilty in 2009 of "cooperating with an enemy government" and sentenced to five years' imprisonment, had left the country. Kamiar was conditionally released after spending two and one-half years in prison, while Arash was granted final release after more than three years in prison. Officials delayed the release of both.

Pretrial Detention: Pretrial detention was often arbitrarily lengthy, particularly in cases involving alleged violations of national security laws. Approximately 25 percent of prisoners held in state prison facilities were reportedly pretrial detainees. According to HRW, a judge may prolong detention at his discretion, and pretrial detention often lasted for months. Often pretrial detainees were held in custody with the general prison population.

On November 4, the UNHRC expressed concern at the length of pretrial detentions and the absence in the law of a pretrial detention time limit. The UNHRC also expressed concern that pretrial detainees are often held incommunicado in unacknowledged detention centers.

Amnesty: While the government at times released prisoners early or suspended their sentences, there were no known amnesties granted during the year to any prisoners, including political prisoners.

e. Denial of Fair Public Trial

The constitution provides that the judiciary be “an independent power;” but in practice the court system was corrupt and subject to political influence. According to the constitution, the head of the judiciary is a cleric chosen by the supreme leader. The head of the Supreme Court and prosecutor general also must be clerics. The head of the judiciary chose revolutionary court judges in part due to their ideological commitment to the system. On November 4, the UNHRC expressed concern about the lack of judicial independence, stating that the judiciary was compromised by undue pressure from the executive branch, including the Office for Supervision and Evaluation of Judges as well as senior clerics and high-ranking government officials. Authorities generally respected court orders, although they also acted extrajudicially at times, especially concerning arrests, searches, and seizures.

Trial Procedures

According to the constitution and criminal procedure code, a defendant has the right to a public trial, presumption of innocence, a lawyer of his or her choice, and the right of appeal in most cases that involve major penalties. These rights were not respected in practice. Panels of judges adjudicate trials; there is no jury system in the civil and criminal courts. In the Media Court, a council of 11 persons selected by the court adjudicates cases. No defendants in any court had the right to confront their accusers, nor were they granted access to government-held evidence.

The UNHRC and various human rights groups, including AI, HRW, and Reporters without Borders (RSF) continued to condemn trials in the revolutionary courts for disregarding international standards of fairness. On November 4, the UNHRC expressed deep concern about the frequent violations of fair trial guarantees.

The government often charged individuals with vague crimes such as “antirevolutionary behavior,” “moral corruption,” “siding with global arrogance,” moharebeh, and “crimes against Islam.” Prosecutors imposed strict penalties on government critics for minor violations. When postrevolutionary statutes did not address a situation, the government advised judges to give precedence to their knowledge and interpretation of Islamic law (Sharia). Under the law judges may find a person guilty based on their own “divine knowledge” (elm-e ghazi), or they may issue more lenient sentences for individuals who kill others considered “deserving of death” (mahdoor-ol-dam), meaning that the victim had done something contrary to Sharia. Secret or summary trials of only five minutes duration frequently occurred. Other trials were deliberately designed to publicize a coerced confession.

During the year human rights groups noted the absence of procedural safeguards in criminal trials. There were many examples of the prosecution providing fabricated evidence, forced confessions, trials closed to the public, and trials without juries. Courts often used confessions made under duress or torture. In one instance the court used private e-mails written while the prisoner was in solitary confinement as a confession for the purposes of his sentencing.

On June 16, AI reported that three mothers faced execution after being convicted of drug-trafficking crimes in an unfair trial. Authorities denied them access to a lawyer to prepare for the trial, and they had no right to appeal their death sentences, which were merely confirmed by the prosecutor general as required by the law. Authorities arrested the three women in 2009

and interrogated them without the presence of their lawyers. On August 10, AI stated that the women's cases had likely been sent for review by the Amnesty and Clemency Commission, but there was no further information at year's end.

On October 19, Branch 28 of the Revolutionary Court reportedly upheld a death sentence--preceded by seven-and-a-half years in prison--for Saeed Malekpour, who was arrested in 2008 by the IRGC's "cyber army," a branch of the IRGC used to monitor online activities for unlawful behavior. While it was established to monitor and prevent activities including criminal and terrorist behavior, the unit was also used to monitor opposition to the regime (see section 2.a.). Malekpour was charged with managing pornographic Web sites. Malekpour maintained that the Web sites used programs he wrote but that he was not aware of the nature of the sites. According to the Human Rights House of Iran (RAHANA), Malekpour's family and attorney made numerous requests for neutral third-party information technology experts to study and investigate Malekpour's case and share their findings in court, but the judge denied their repeated requests. The court handed down its verdict after only two weeks. At year's end he remained in prison.

On December 18, state media broadcast an interview with a dual U.S.-Iranian national who "confessed" to being a spy against Iran. The individual was reportedly detained August 29 and held in Evin Prison without access to an attorney. An espionage trial began on December 27, with a court-appointed lawyer representing the dual national. The government refused consular access by the Swiss, who represent U.S. interests in Iran.

There were developments in a high-profile case from 2006. On January 17, Zohre Elahian, a Majlis member, stated that judiciary authorities commuted Sakineh Mohammadi-Ashtiani's sentence from death by hanging to 10 years in prison. In 2006, after having been convicted and punished with 99 lashes for involvement in her husband's murder, a court sentenced Ashtiani to death by stoning for adultery, suspended in September 2010. On June 22, the chief of the East Azerbaijan Justice Administration stated that Ashtiani had begun serving her prison term. However, he further announced that another sentence had not yet been determined. According to a July 8 report received by the International Committee against Stoning (ICAS), Ashtiani remained in Tabriz Central Prison, where she had attempted suicide as a result of psychological pressure from her incarceration, impending sentence, and deprivation of family visits. On May 16, a revolutionary court sentenced one of Ashtiani's lawyers, Houtan Kian, to 11 years in prison for allegedly having two identity cards and for antiregime activities. According to reports, Kian had not been allowed to meet with his lawyer or family and was subjected to significant physical torture and solitary confinement since his arrest in May. On October 28, HRANA reported Kian had been moved to the methadone section of Tabriz Prison. Ashtiani's son, who had also been arrested, was released.

Opposition groups continued to question the legitimacy of the special clerical court system. The court is headed by a scholar in Islamic law and is capable of ruling on legal matters through independent interpretation of Islamic legal sources. Clerical courts, which investigate alleged offenses and crimes by clerics and which the supreme leader directly oversees, are not provided for in the constitution, and they operated outside the domain of the judiciary. Critics alleged that clerical courts were used to prosecute clerics for expressing controversial ideas and for participating in activities outside the sphere of religion, such as journalism or reformist political activities.

Political Prisoners and Detainees

Statistics regarding the number of citizens imprisoned for their political beliefs were not available, but human rights activists estimated the number in the hundreds, perhaps as high as 900. According to the ICHRI, an estimated 500 persons were arbitrarily detained for peaceful activities or the exercise of free expression, and another 500 prisoners of conscience had been sentenced to lengthy prison terms following unfair trials. On June 28, the ICHRI reported there were more than 200 political prisoners inside Ward 350 of Evin Prison, at least 120 of whom were imprisoned in the aftermath of the 2009 elections or as Green Movement supporters.

During the year the government rounded up students, journalists, lawyers, political activists, artists, and members of religious minorities (see sections 1.a. through 1.e., 6, and 7.a.). The government charged many with crimes such as "propaganda against the regime," "insulting the regime," and apostasy, and treated such cases as national security trials. According to opposition press reports, the government also arrested, convicted, and executed persons on questionable criminal charges, including drug trafficking, when their actual offenses were reportedly political. The government also reportedly held some

persons in prison for years under charges of sympathizing with terrorist groups such as the MEK, which were often baseless charges. Authorities routinely held political prisoners in solitary confinement for extended periods and denied them due process and access to legal representation. Political prisoners were also at greater risk of torture and abuse in detention. The government generally placed political prisoners in prisons far from their homes and families. The government did not permit international humanitarian organizations or UN special rapporteurs access to political prisoners.

In a July 13 letter to UN special rapporteur Ahmed Shaheed, imprisoned journalist Issa Saharkhiz accused authorities of using harsh prison conditions to slowly kill political prisoners. Saharkhiz stated: "What is happening now in the prisons is a crime against humanity; it is just as bad as Stalin's inhumane mandatory labor camps in Siberia." Saharkhiz warned that the government's objective was "to kill the protesting prisoners silently and gradually." Referring to the death of two political prisoners, Hoda Saber and Mohsen Dokmehchi, he wrote: "They are deliberately trying to destroy us and have prepared a silent death for us because they fear our survival even behind bars." Saharkhiz, one of the founders of the Society for the Defense of Press Freedom in Iran, was arrested in 2009 and sentenced to three years in prison for "insulting the leader and the regime." He was banned from political and media activities for five years and prohibited from leaving the country for a year. At year's end he was at Rejai Shahr Prison and had not been permitted temporary medical leave despite severe health problems. Opposition Web site Saham News reported on August 29 that prison officials beat Saharkhiz on his way to the prison infirmary.

Authorities occasionally gave political prisoners suspended sentences or released them for short or extended furloughs prior to completion of their sentences, but they could order them to return to prison at any time. Suspended sentences often were used to silence individuals. The government also controlled political activists by temporarily suspending baseless court proceedings against them and allowing authorities to rearrest them at any time, and it attempted to intimidate activists by calling them in repeatedly for questioning. The government issued travel bans on former political prisoners (see section 2.d.).

On April 3, according to opposition media, police arrested Ghassem Sholeh Saadi, a Tehran University professor and former parliamentarian, based on a two-and-a-half-year sentence allegedly revoked several years ago. He was convicted of "insulting the authorities," "acting against national security," and "spreading propaganda to agitate public opinion," based on a letter he wrote in 2002 criticizing some of Ayatollah Khamenei's policies and for giving media interviews on the same. At year's end he was in prison. His repeated requests to authorities for medical attention were denied despite his worsening medical condition, a spinal injury resulting from alleged torture in prison.

On April 29, journalist Siamak Pourzand, age 80, who was held under house arrest in recent years due to his advanced age and health problems, committed suicide by jumping from the sixth-story balcony of his apartment in Tehran. In 2002 authorities sentenced Pourzand to 11 years in prison for "spying and undermining state security" and "links with monarchists and counterrevolutionaries," after torturing and holding him in solitary confinement for months.

On May 3, the government arrested human rights activist Ashkan Zahabian so that he could fulfill a six-month prison term for disturbing public order and for organizing protests at his university. From December 2010 until his arrest, his family faced harassment from Intelligence Ministry representatives, including death threats. On June 13, the ICHRI reported that Zahabian remained in solitary confinement and on August 31, he had begun a hunger strike in Matikola Prison. Zahabian's father told the ICHRI that prison staff had moved his son to solitary confinement after he began his strike, even though he was in a coma, according to other prisoners. His father added that Zahabian had experienced stomach bleeding for two weeks and authorities refused his requests for outside treatment. According to the ICHRI, he was subjected to torture during his incarceration and was housed with violent criminals. On September 22, Zahabian was released and at year's end remained out of prison, suffering from stomach bleeding, liver damage, and other health issues resulting from his reported torture.

On May 4, a court banned Hassan Younesi, a reformist attorney and the son of a former minister of intelligence, from practicing law for five years and sentenced him to one year in prison. The sentence was upheld on appeal on July 4. He was summoned by Evin Prison authorities to serve his sentence. He went to prison and was released on September 29 on furlough. Forces arrested Younesi during the 2009 postelection events and detained him for a lengthy period of time in ward 209 of Evin Prison. At year's end he reportedly was out of prison on furlough.

On May 15, a court presided over by Judge Pir Abbasi sentenced student activist Mostafa Eskandari to 31 years in prison. Authorities arrested Eskandari in 2009 while he was participating in a memorial service at the grave of Neda Agha Soltani, who was killed during the 2009 postelection protests. He was accused of various offenses, including diversion of public opinion, being interviewed by foreign media, and harming national security. During his interrogation he was reportedly violently beaten and tortured; reports stated that interrogators broke his nose and ribs. According to human rights activists, Eskandari was arrested with his wife, Kobra Zaghe Doust. She was imprisoned for two years, during which time she was also violently interrogated and forced to file for divorce against her husband after being threatened with a prolonged sentence of imprisonment. Prison officials prevented Eskandari from seeing his mother on December 16 and beat him when he tried to give her medicine for her failing health. At year's end he remained in Gohardasht prison.

On June 1, according to eyewitness accounts, plainclothes police beat reform activist and women's rights campaigner Haleh Sahabi, leading to her death from cardiac arrest. Sahabi had been serving a two-year sentence after being arrested outside the parliament in 2009, following Ahmadinejad's inauguration. She had been released from prison to attend the funeral of her father, prominent political activist Ezzatollah Sahabi. According to eyewitness accounts reported by international NGOs, including a journalist and member of the Iran Freedom Movement, police interrupted the funeral procession and beat mourners, including Sahabi. During a June 14 press conference, Tehran prosecutor Abbas Jafari Dolatabadi denied authorities had any role in Sahabi's death. In mid-December Majlis member Ali Motahari publicly admitted that the authorities "did not want her to die, and what happened was a result of a lack of attention [by the agents]." At year's end there had been no investigation.

On June 3, the family of imprisoned journalist Masoud Bastani reported that a prison guard beat him in front of them after Bastani asked for more time to say goodbye at the end of visiting hours in Rejai Shahr prison. According to the family, hospital staff later told them he arrived unconscious and was treated for minor head injuries. On June 9, prison officials reportedly transferred him to solitary confinement, where he later went on a hunger strike to protest the deaths of Hoda Saber and Haleh Sahabi in prison. Security forces arrested Bastani in 2009; he was sentenced to six years' imprisonment for propaganda against the government, creating unrest, and disturbing public order. At year's end he was in prison. His wife, Mahsa Amrabadi, also a journalist, was arrested during March 1 protests in Tehran. She was detained in Evin Prison and released on bail on March 16. On June 16, Branch 28 of the Revolutionary Court presided over by Judge Moghiseh sentenced Amrabadi to one year in prison for her antiregime interviews and reporting.

On June 12, according to opposition Web sites, journalist and rights activist Reza Hoda Saber died of a heart attack reportedly brought on by a 10-day hunger strike and beatings by prison authorities without proper medical attention. On June 13, 64 political prisoners in Evin Prison's ward 350 released a statement blaming Hoda Saber's death on abuse by prison authorities. Kaleme reported that Hoda Saber began the strike after Haleh Sahabi died at the funeral of her father on June 1. Prosecutor General Gholam-Hossein Mohseni-Ejei immediately refuted allegations that Hoda Saber died as a result of the hunger strike or beatings. On June 14, he announced an investigation and stated that his office was awaiting statements from the prison authorities. The Tehran Prosecutor's Office gave a press conference at the same time stating that the prison officials may not have reacted quickly enough to Saber's health complaints. At year's end no further information on the investigation was available. Saber had been serving a 10-year sentence. He was initially arrested in 2000, then released, but detained again during the 2009 postelection crackdown.

From June 12 to July 9, the government detained Mansoureh Behkish, a member of the Mourning Mothers, an organization against execution of prisoners, in Evin Prison. She was previously detained in January 2010, as well as in 2008 and 2009. She is prohibited from leaving the country. Several other members of Mourning Mothers were imprisoned during the year. Parvin Mohktare, mother of Kouhyar Goudarzi, was sentenced to 23 months following her August 6 arrest for protesting her son's imprisonment. She remained in prison at year's end. Zhila Mahdavian was sentenced to five years' imprisonment for protesting her son's imprisonment for his involvement in post-2009 election protests. She was later released on bail and remained out of prison at year's end. Zhila Karamzableh, a poet, was sentenced to five years' imprisonment for writing a poem for Mourning Mothers. She began serving her sentence on December 27 and was in prison at year's end. March media

reports indicated that Mourning Mothers member Hakimeh Shokri remained in prison with deteriorating health. In December 2010 authorities arrested Shokri at Behesht Zahara Cemetery along with several other mothers celebrating the birthday anniversary of one of the protesters killed during the 2009 Ashura protests.

On June 15, Mehdi Tajik began his two-year prison sentence in Evin Prison. Tajik, a graduate student at University of Tehran and an outspoken student activist and journalist, was also banned from political activity and journalism for 15 years. He was arrested in his home following the mass Ashura protests in 2009 for founding a student activist organization. He was released in March 2010 on bail. However, on June 15, he was summoned by the Evin Prison enforcement authorities to serve his sentence and remained in prison at year's end.

On June 21, according to the ICHRI, Intelligence Ministry officers forcibly entered journalist and photographer Maryam Majd's home, confiscated personal items, and arrested her a day before a planned trip to Germany to photograph the Women's World Cup. On the same trip she was supposed to complete work on a book about female soccer players. On July 12, a source close to the family told the ICHRI that Majd had spent more than 20 days in solitary confinement and that she had developed digestive and kidney problems. She was released in late July on bail (see section 2.a.).

On July 8, according to HRANA, Branch 3 of the Revolutionary Court in Khuzestan Province sentenced blogger Payman Roshan Zamir to 17 months in prison for "propaganda against the regime" and "insulting the supreme leader." According to the ICHRI, during his May 14 closed trial Zamir did not present a defense to protest the unjust proceedings, including the closed nature of the trial, the lack of jury or representative of the Prosecutor's Office, and fabricated evidence presented against him. He served one month in Karoon Prison, where he recounted the harsh conditions there to the ICHRI in an interview. He was released on bail, and at year's end he likely remained out of prison.

On July 10, security officials arrested actress and Green Movement supporter Pegah Ahangarani before she could leave the country to go to the Women's World Cup, where she was scheduled to participate in related television programming. She was also released in late July.

In mid-September, according to several opposition Web sites, authorities arrested three state media journalists--Mehrdad Sarjoui, a writer for the international sections of the English language daily newspapers; Amir Ali Alamehzadeh, a journalist at the Iranian Labor News Agency; and Hadi Ahmadi, a journalist in the economics section of the ISNA--and detained them in Evin Prison. At year's end they reportedly remained in prison pending charges and trial.

On October 11, the ICHRI reported that Ali Tari, a former IRGC member during the Iran-Iraq war and former Mousavi campaign director, returned to prison to serve his remaining six-month prison sentence for "publishing falsehoods." He had been on medical furlough for his heart condition. The ICHRI reported that Tari's situation in Mati Kola Prison was dire and that prison officials were preventing the delivery of medication for his heart condition. At year's end he remained in prison.

In mid-October human rights organizations reported that security forces had arrested disabled war veteran and Mousavi campaign member Hossein Fayezi at his home and confiscated his personal belongings. At year's end he remained incommunicado.

On December 17, blogger Hossein Ronaghi Maleki submitted a letter to the Tehran Prosecutor's Office protesting his treatment in prison and at the same time began a hunger strike. Maleki was arrested in 2009 for blogging about the postelection protests. In October 2010 Branch 26 of the Revolutionary Court sentenced him to 15 years in prison. According to interviews by family with the ICHRI, prison officials usually beat him after each letter he sent to the Prosecutor's Office.

There were developments in several cases from previous years.

On February 8, a revolutionary court sentenced Mehdi Mo'tamedi Mehr, a member of the Committee to Defend Free, Healthy, and Fair Elections and the banned political organization, the Freedom Movement of Iran, to five years in prison for his political activities during the 2009 election. Authorities detained him after the committee published a statement about civil society institutions as election observers.

On January 10, an appeals court upheld a 10-year prison sentence and ban on political activities for Emad Bahavar, also a member of the Iran Freedom Movement. In 2009 authorities detained Bahavar for "spreading propaganda against the regime" by campaigning for presidential candidate Mousavi. At year's end he remained in Evin Prison.

At year's end student activists Mohsen Barzegar and Iman Sadighi were likely in prison. Their colleague Nima Nahvi was released on January 12 after serving a 10-month sentence. In February 2010 an appeals court upheld prison sentences for Barzegar, Sadighi, and Nahvi, and one-year suspended sentences for Hamid Reza Jahantigh, Hessam Bagheri, Siavash Salimi Nejad, and Ali Taghipour. The students, most of whom were also prohibited from attending educational institutions for one to five years, were convicted of "actions against national security" and "propaganda against the regime," based on their alleged planning of and participation in protests and contacts with antigovernment entities. Authorities conditionally released Barzegar and Sadighi in July 2010, but in November 2010 police rearrested Barzegar at his home prior to National Students Day, allegedly without a warrant (see section 2.b.), and again during February 14 protests in Babol. According to the ICHRI, Barzegar informed his family of his poor health in solitary confinement at the Sari Intelligence Office Prison, but authorities reportedly refused to allow his family to bring him medication. On June 24, multiple news sources reported that Barzegar had been sentenced to two years in prison for acting against national security and insulting the supreme leader due to his participation in the February 14 protests. He was tried in absentia. In February various news sources reported that security forces had arrested Sadighi during student demonstrations in Shiraz and taken him to an unknown location. On August 29, HRANA reported that Sadighi had been sentenced to one year in prison for "propaganda against the regime." Authorities reportedly held him in solitary confinement for 20 days and tortured him into making a televised confession.

At year's end Bahareh Hedayat remained in Evin Prison. She was convicted in May 2010 of "insulting the supreme leader" and sentenced to six months for "insulting the president," and five years for "actions against national security, propagation of falsehoods, and mutiny for congregation." News reports on November 3 indicated that six months were added to her sentence, which was up to 10 years because of earlier suspended sentences. On June 1, Hedayat's husband was arrested during reform activist Haleh Sahabi's funeral (see section 1.a.).

On January 24, authorities executed Jafar Kazemi (see section 1.a.).

On January 9, a revolutionary court convicted Nasrin Sotoudeh, a prominent human rights lawyer and women's rights activist, of "acting against the national security," "propaganda against the regime," and "membership in a banned organization," namely Nobel Peace Prize laureate Shirin Ebadi's Defenders of Human Rights Center (DHRC), and sentenced her to 11 years in prison and a 20-year travel ban. Following her sentencing, authorities arrested her husband, Reza Khandan, and detained him for a week. He was released without charge. However, in early October he was summoned again to the Evin Prison court for a letter he wrote to the Tehran prosecutor in 2010 regarding the conditions of his wife's arrest. On June 8, the ICHRI reported that Evin Prison authorities had forbidden visits to Sotoudeh from her children in an effort to pressure her into a false confession. In early August a prison guard harassed Sotoudeh's husband and tried to take away his notebook, which he had used to write down a list of items Sotoudeh needed in prison. According to the ICHRI, officials detained the family for five hours, during which time a female officer physically abused Sotoudeh's sister. On September 14, Branch 54 of the Tehran Appeals Court reduced Sotoudeh's sentence to six years. On October 24, Khandan told the ICHRI that prison officials had banned visits because Sotoudeh had refused to wear a headscarf inside the prison, even though there are no laws requiring it. She remained in prison at year's end, but it was unknown whether she remained in solitary confinement.

On March 31, RAHANA reported that authorities had banned family visits at Evin Prison for Mahdieh Golrou, a student activist and member of the Advocacy Council for the Right to Education who was convicted in April 2010 for interviewing with foreign media in a tribute to Students Day, acting against national security, and purported association with the MEK. She reportedly

told the ICHRI that the MEK charge was “ridiculous.” On April 9, according to media reports, authorities moved Golrou to solitary confinement at Evin. On July 16, they reportedly released her on a short furlough. Golrou suffered from intestinal problems during her imprisonment.

During the year Shabnam Madadzadeh, a member of the Islamic Association and deputy general secretary of the student organization Tahkim Vahdat, and her brother Farzad Madadzadeh wrote separate letters to the UN special rapporteur for Iran criticizing the government’s treatment of prisoners, especially members of the opposition. Shabnam wrote that prison officials abused her and her brother during interrogations and held them in solitary confinement in Evin Prison. Human rights advocates reported that Farzad and three other political prisoners were subjected to “severe mental and physical pressure” from Intelligence Ministry officials after writing the letter. In January 2010 a revolutionary court sentenced the Madadzadehs to five years’ imprisonment for moharebeh and propaganda against the state. In late October Shabnam said she was being held in Evin, after having been transferred to Qarchak Prison from Rejai Shahr Prison earlier in the year, while Farzad had reportedly been transferred back to Rejai Shahr, where he was being held incommunicado.

On September 10, security forces arrested Abdolfattah Soltani (see section 1.f.).

On November 2, the trial began of ailing former foreign minister and secretary general of the Freedom Movement of Iran Ebrahim Yazdi on charges of “assembly and collusion against national security,” “propaganda against the regime,” and “establishing and leading the Iran Freedom Movement” after being delayed several times during the year. At the trial opening, the 80-year-old Yazdi did not offer any defense; Yazdi’s son-in-law told the ICHRI Yazdi chose to remain silent because he found the Revolutionary Court unqualified to review the charges against him. According to his son-in-law, Yazdi remained imprisoned under house arrest, where poor living conditions were reportedly contributing to his deteriorating health. Authorities detained Yazdi at least three times after the 2009 elections, most recently on October 1 for allegedly participating in “illegal prayer” while he attended the memorial service for the daughter of a friend in a private home. During one of his imprisonments, Yazdi spent 50 days in solitary confinement. Yazdi was recovering from bladder cancer surgery as well as heart surgery, and his family believed his life was in danger because of the physical and psychological strains of imprisonment, lack of medical care, and unsanitary conditions. At year’s end he was out on bail for medical treatment.

On July 19, Branch 4 of Evin Prison Court summoned imprisoned student activist Abdollah Momeni to face new charges of “propagating lies” and “creating public anxiety” for a letter he wrote to the supreme leader in August 2010 asking him to investigate the use of torture during interrogations. On July 10, Momeni’s wife, Adinehvand, told Radio Farda that her husband was suffering from intestinal problems as a result of his recent hunger strike to protest the death of Hoda Saber. On November 4, she told the ICHRI that she was no longer permitted to visit him. Momeni, a spokesman for the country’s largest reformist student organization, the Office to Foster Unity, was arrested during the 2009 postelection crackdown and was sentenced to four years and 11 months in prison. At year’s end he was in ward 350 of Evin Prison.

During the year authorities continued to prevent an Iranian-American academic from leaving the country. He was initially arrested in 2009 on charges of espionage based on his association with the Open Society Institute and sentenced to 15 years in prison, later reduced to five years by an appellate court. At year’s end he remained under house arrest and under a travel ban.

On September 1, HRANA reported that judicial and prison authorities at Rejai Shahr Prison continued to deny medical care to former university student Misagh Yazdan-Nejad, sentenced in 2009 to 13 years’ imprisonment for participating in a 2007 demonstration. He was reportedly in critical condition with a respiratory illness. At year’s end he remained in prison in critical condition.

On January 26, Iran Human Rights Voice reported that authorities had released from detention Mohammad Ozlati-Moghaddam, head of opposition leader Mousavi’s veterans’ affairs committee. He was reportedly arrested in November 2010 for his connections to the Mousavi campaign.

November 3 media reports indicated that an appeals court upheld a six-year prison sentence against economist and journalist Saeed Leylaz for allegedly maintaining ties with foreigners, working to overthrow the government, and criticizing the economic performance of the regime during 2009 postelection protests. He was released on bail in 2010, and at year's end it was believed that he remained out on bail.

On June 20, IRGC-linked *Jahan News* reported that the seven-year sentence for Emaddedin Baghi, founder of the Committee for the Defense of Prisoners' Rights, had been reduced to one year on appeal. On June 21, international media reported that the government had released Baghi, according to his lawyer. In 2010 Baghi was convicted of "propaganda against the regime" and "colluding against the security of the regime" in connection with an interview with the late grand ayatollah Hossein Ali Montazeri and his work advocating for prisoners' rights. A revolutionary court also prohibited him from participating in political activity for five years. Authorities imprisoned Baghi on previous occasions since 2000 for his activities as a journalist and his campaigns against the government's execution of juvenile offenders.

On July 27, the ICHRI reported that Atieh Tehari, the wife of Azerbaijani journalist and ethnic minority rights activist Saeed Matinpour, said her husband was suffering from untreated back problems in Evin Prison. He had also had several heart attacks. Authorities arrested Matinpour in 2007 for participating in a seminar in defense of Turkish-speaking citizens in Turkey. The court sentenced him to eight years in prison for "contact with foreigners" and "propaganda against the regime."

On February 27, Evin Prison officials reportedly attacked and beat dissident cleric and regime critic Ayatollah Mohammad Kazemeini Boroujerdi and forcibly shaved his beard. Some reports suggested Boroujerdi may have lost vision in one eye and that authorities did not allow him to leave prison to receive medical treatment. On October 1, human rights groups reported Boroujerdi suffered a severe heart attack, which led to pulmonary edema. Intelligence authorities reportedly rejected demands by prison officials for him to be treated at a properly equipped medical facility. In addition, sources told the ICHRI in April that Boroujerdi's relatives and followers reported abuse and arrests by security forces. Forces in civilian dress allegedly attacked Boroujerdi's sister Sa'adat and broke her leg, and authorities placed their brother, Seyed Mohsen Boroujerdi, under house arrest. The government also arrested supporters of Boroujerdi, including Iman Khodadai, who reported he and others had been beaten and abused while in detention. The followers also reported that security forces put their homes under surveillance and harassed them with threatening phone calls. Boroujerdi is a cleric who advocated the separation of religion and government; he was arrested in 2006. At year's end there were continued concerns over his health and lack of access to medical care.

On June 28, human rights advocates reported that authorities moved Berouz Javid-Tehrani and three other political prisoners to solitary confinement at the IRGC prison and later transferred them to ward 209 of Evin Prison. Family members reportedly were not permitted to visit, and he was reportedly severely tortured throughout the duration of his imprisonment. He was retried in mid-October and was finally released on his birthday, December 26. Javid-Tehrani was imprisoned for his activities during the 1999 student uprising.

All of the following individuals were believed to be in prison at year's end: writer and student leader, Amin Ghazain Tehran; reformist cleric and member of the reformist political group Islamic Iran Participation Front, Hadi Qabel; Office for Consolidating Unity spokesman, Ali Nikunesbati; former vice president, Muhammad Ali Abtahi; former interior ministry official Muhammad Atrianfar; intellectual and prodemocracy activist, Saeed Hajjarian; Kurdish and women's rights activist, Zeinab Bayazidi; political activist and founder of the Iran Democratic Party, Abbas Khorsandi; and leader of the reformist party the Islamic Iran Participation Front, Mohsen Mirdamadi.

Civil Judicial Procedures and Remedies

According to the constitution, the Court of Administrative Justice--under the supervision of the head of the judiciary--investigates the grievances of citizens with regard to government officials, organs, and statutes. In practice citizens had limited ability to sue the government. Citizens were not able to bring lawsuits against the government for civil or human rights violations. Dispute resolution councils are available to settle minor civil and criminal cases through mediation before referral to courts.

Property Restitution

The constitution allows the government to confiscate property acquired illicitly or in a manner not in conformity with Islamic law, and the government particularly targeted religious minorities, especially members of the Baha'i faith. On November 9, the Baha'i International Community reported a wave of attacks on Baha'is and their property, including incidents in Rasht, Semnan, and Sanandaj. There were also reports during the year of authorities seizing the property of members of the Sunni religious minority.

f. Arbitrary Interference with Privacy, Family, Home, or Correspondence

The constitution states that "reputation, life, property, [and] dwelling[s]" are protected from trespass except as "provided by law," but the government routinely infringed on this right. Security forces monitored the social activities of citizens, entered homes and offices, monitored telephone conversations and Internet communications, and opened mail without court authorization. There were widespread reports that government agents entered, searched, and ransacked the homes and offices of reformist leaders, activists, and journalists--including relatives of BBC staff members (see section 2.a.) and political opposition leaders Mir Hossein Mousavi and Mehdi Karroubi (see section 1.d., Arrest Procedures and Treatment While in Detention)--in an attempt to intimidate them.

On September 10, after his arrest on charges of waging propaganda against the regime, establishing the DHRC, assembly and collusion against national security, and accepting an unlawful prize (the Nuremberg International Human Rights Award), security forces entered the offices of prominent human rights lawyer Abdolfattah Soltani and confiscated several of his personal and family documents. According to Soltani's wife, Massoumeh Dehghan, authorities later ransacked their house without showing a warrant, and took CDs, papers, and other documents. On November 17, Dehghan told the ICHRI that Soltani would file a lawsuit against the head of the governmental High Council for Human Rights, Mohammad Javad Larijani, for making false accusations against him. On November 16, Larijani accused Soltani of being connected to terrorist groups. Soltani was believed to be in solitary confinement in Evin Prison at year's end.

On December 10, authorities released a film of journalist Mohammad Nourizad on YouTube consisting of private video footage made by Nourizad in his home, which included praise for the supreme leader as well as criticism of Nourizad's time in solitary confinement for 60 days. He also wrote weekly letters to the supreme leader criticizing the conditions of solitary confinement in prisons. For his criticism IRGC officials confiscated the footage along with his camera and other personal items during a raid on his home. Following the raid the video was released without his knowledge or consent. According to an interview with the ICHRI on December 17, Nourizad was concerned that the government would use the video against him.

There were numerous reports throughout the year of women arrested for wearing improper hijab or tight-fitting clothing. Authorities also warned men against wearing necklaces and having "glamorous" hairstyles. There were several reports of morality police shutting down hair salons for dispensing "inappropriate" styles for men. Vigilantes continued their attacks on young persons considered "un-Islamic" in their dress or activities during the year, with no reports of criminal sanction for their violence. On May 9, the head of the morality police, Commander Ahmad Rouzbehani, announced that 70,000 officers would be dispatched to enforce the stringent moral codes, particularly concerning "un-Islamic" dress, among the population. The media reported several arrests, some with violence, over the summer as these officers stopped vehicles to arrest women without proper head coverings and stopped people on the street for "appearing in public like models." YouTube featured several videos of women being harassed by uniformed and plainclothes officers for inappropriate dress.

There were reports during the year that the MOIS arrested and harassed family members of political prisoners and human rights activists, especially the in-country family members of activists living outside of the country, prohibiting them from speaking to foreign media or traveling abroad, blocking their telephone conversations, making false criminal charges against them, and blocking their access to higher education.

On January 30, authorities summoned one of opposition politician Mehdi Karroubi's sons, Mohammad Hussein, to the Evin Prison Court. According to the Karroubi-affiliated Web site Saham News, authorities questioned Mohammad Hussein in relation to his father's stance that prisoners were being abused at the Kazhirak detention facility. On February 22, authorities arrested another son, Ali Karroubi, and Mehdi's daughter-in-law, Nafiseh Panahi, at his parents' house. Panahi was released a few hours later, but Ali Karroubi was reportedly detained until March 17 and paid a bail of 100 million toman (\$100,000). Ali Karroubi alleged he was tortured and beaten throughout his detention in solitary confinement in Evin Prison.

On October 5, the BBC reported that police and government officials had been arresting, questioning, and intimidating relatives of BBC staff members of Iranian origin but who no longer lived in the country. According to the report, authorities confiscated passports, searched homes, and urged relatives to tell BBC staff members to stop appearing on air, return to the country, and secretly provide information about the BBC.

Section 2. Respect for Civil Liberties, Including:

a. Freedom of Speech and Press

Status of Freedom of Speech and Press

The constitution provides for freedom of expression and of the press, except when the words are deemed "detrimental to the fundamental principles of Islam or the rights of the public." The law states that "anyone who undertakes any form of propaganda against the state" can be imprisoned for as long as one year; the law does not define "propaganda." The law also provides for prosecution of writers for instigating crimes against the state or national security, or for "insulting" Islam; the latter offense is punishable by death. The government severely restricted freedom of speech and of the press, and it used the law to intimidate or prosecute not just individuals directly criticizing the government, but also those raising topics such as women's or minorities' rights. The CPJ stated that the government maintained a campaign of press intimidation throughout the year.

Freedom of Speech: Individuals could not criticize the government publicly or privately without reprisal, and the government actively sought to impede criticism. The government monitored meetings, movements, and communications of opposition members, reformists, activists, and human rights defenders. The government accessed private e-mail accounts during the year and used the information obtained to harass, intimidate, and arrest account owners. The government often charged individuals with crimes against national security and insulting the regime based upon letters, e-mails, and other public and private communications. During the year there were several cases of the government increasing prison sentences for prisoners who wrote open letters criticizing their treatment or other government practices (see section 1.e.).

On February 3, Branch 28 of Tehran's Revolutionary Court sentenced Khalil Bahramian to 18 months in prison and prohibited him from practicing law for 10 years. Bahramian, an attorney who defended many of the 2009 protesters and other Kurdish prisoners, was found guilty on charges of "spreading propaganda against the regime" and "insulting the head of the judiciary." The charges were based on interviews he conducted with foreign and domestic media following the May 2010 execution of five political activists he defended. Bahrami had discussed in the interview various judicial irregularities that led to the hangings. At year's end he remained in prison.

On February 20, according to state television, Faezah Hashemi Rafsanjani, the daughter of former president Akbar Hashemi Rafsanjani and an outspoken political and women's rights activist, was briefly detained for "making blunt statements" and "chanting provocative slogans" at a banned opposition rally in Tehran. Rafsanjani was later harassed by plainclothes officers at a rally in mid-April for an interview that she gave opposition news outlet Roozonline, in which she said that the regime was run by "thugs and hooligans." In mid-December she had a closed-door trial on charges of insulting the regime. At year's end she had not been sentenced.

According to Daneshjoo News, during the year the government adopted a harsher stance and imposed security restrictions against poets deemed critics of the regime. On March 10, according to various sources, plainclothes policemen arrested Mostafa Badkoobei in his home. He was detained in solitary confinement in ward 209 of Evin Prison before being released on bail. After the elections Mostafa's poems focused on criticism of Ahmadinejad's government.

There were developments in one case from 2010. On June 11, a court sentenced economist Fariborz Rais-Dana to one year in prison. According to local media, he was charged with membership in a writers' association, preparing press releases for "seditionists" (i.e., reformists), and issuing announcements against the regime, all stemming from his criticism of government-subsidy cuts in a BBC interview in December 2010. Rais-Dana was arrested in December 2010 and held for approximately one month. On January 17, he was released on 30 million toman (\$30,000) bail.

Freedom of Press: There were private print media companies in the country, but the government held significant influence over all media. The Islamic Republic of Iran Broadcasting (IRIB) directs state-owned media. According to the constitution, the supreme leader appoints the head of IRIB, and a council composed of representatives of the president, judiciary, and the Majlis oversees IRIB's activities. The government's Press Supervisory Board (PSB) is responsible for issuing press licenses (which it sometimes revoked in response to articles critical of the government) and for examining complaints filed against publications or individual journalists, editors, or publishers. During the year the government banned, blocked, closed, and/or censored publications that were critical of the government. The government did not permit members of foreign media outlets to film or take photographs in the country, required foreign correspondents to provide detailed travel plans and topics of proposed stories before it granted visas, and attempted to influence them through pressure to garner more favorable coverage. Freedom House considered the country "not free" in terms of media freedom.

The government severely limited the operation of independent print media by shutting down or prohibiting opposition and reformist newspapers, intimidating journalists, and censoring news. Government-controlled print media were also subject to censorship, restrictions, and even temporary closures for reportedly insulting the regime. International NGOs reported that authorities had temporarily shut down at least 40 publications since 2009. The Media Court ordered permanently closed more than 10 national publications during the year.

On September 5, according to ISNA, the Tehran Prosecutor's Office banned *Rouzgar*, a daily reformist publication, and *Shahrvand-e Emrouz*, a weekly reformist magazine, for publishing unacceptable material. According to ICHRI reports, the charge stemmed from a cover photo of President Ahmadinejad in traditional garb.

On November 19, the Tehran Prosecutor's Office ordered a two-month closure of *Etemad*, a reformist newspaper, for "disseminating lies and insults regarding government officials." The order cited several articles, including an interview with Ali-Akbar Javanfekr, President Ahmadinejad's media adviser, head of the Islamic Republic News Agency (IRNA), and manager of *Iran*, in which he criticized the inner circle of the president. On November 20, a Tehran criminal court sentenced Javanfekr to one year in prison and banned him from journalism for three years for "publishing materials contrary to Islamic norms" based on an August *Iran* article questioning the country's dress code for women. On November 21, security forces raided *Iran*'s offices, reportedly using tear gas to disrupt a press conference where Javanfekr was speaking, and detained 30 staff members, including Javanfekr. The government released Javanfekr and the staff members later in the day. At year's end he remained free on bail.

The following papers banned in 2009 remained so: *Kalameh Sabz*, *Etemad-e Melli*, the business newspaper *Sarmayeh*, and *Hayat-e no*.

According to the constitution, private broadcasting is illegal. The government controlled and maintained a monopoly over all television and radio broadcasting facilities through a state-controlled entity, the Voice and Vision Organization. Radio and television programming--the principal source of news for many citizens, especially in rural areas--reflected the government's political and socioreligious ideology. Although satellite companies broadcast on private networks based in third countries, the government pressured advertising companies to work only with state-owned media. In November the police chief publicly warned companies advertising on satellite television that they might face criminal charges. In doing so, many independent stations and programs were forced to close. Foreign programs, such as BBC Persian and Voice of America (VOA), were subjected to government jamming.

Satellite dishes that received foreign television broadcasts were forbidden, and the government often confiscated them from homes. According to opposition Web sites, police confiscated satellite dishes from rooftops in Tehran ahead of the February 11 anniversary of the Islamic revolution. In late May authorities launched a new campaign to remove dishes, and Tehran police confiscated more than 2,000 satellite dishes in a single day. In mid-August Tehran Special Operations forces along with plainclothes police used ropes to climb on to balconies and enter private homes. On October 1, the country's police chief promised to intensify efforts to confiscate dishes, having earlier claimed that such efforts had become "three times more effective" over the previous months. On October 20, the assistant commander of state security forces in Mazandaran claimed to have confiscated more than 6,000 dishes. However, most satellite dishes in individual homes reportedly continued to operate at year's end.

On December 1, the government banned all foreign media from filming or reporting on the scene of protests in front of the United Kingdom embassy, following its storming by students in the previous days. This banning was notable because although the government has previously prohibited foreign media from covering opposition rallies, the ones held in front of the embassy were progovernment.

Book printers were still required to receive prepublication permission from the Ministry of Culture and Islamic Guidance, which reviewed and censored all manuscripts. The ministry also inspected foreign printed materials prior to their domestic release. In January the government banned all publications and sales of popular author Paulo Coelho's books due to his support for a journalist who spoke out after the 2009 postelection violence.

Violence and Harassment: The government and its agents harassed, detained, tortured, and prosecuted publishers, editors, and journalists for their reporting (see also section 1.e., Political Prisoners and Detainees). The government also harassed many journalists' families, and journalists were often subjected to solitary confinement in prison. During the year the government detained, jailed, tortured, or fined numerous publishers, editors, and journalists (including Internet media) for their reporting. The RSF reported that 42 journalists remained in detention at year's end. International NGOs reported that more than 60 journalists were forced into exile during the year alone, and authorities had shut down at least 40 publications since 2009. Eighteen journalists, along with their families, were in exile.

On September 5, police arrested reporter and photojournalist Reza Entessari during protests to protect the rights of Gonabadi dervishes, a minority group that is a Sufi sect. In December he was transferred from ward 209 to ward 350 of Evin Prison, and at year's end he remained in prison awaiting sentencing.

On September 17, authorities arrested six citizens making a documentary for the BBC's Persian news service, reportedly without authorization from the foreign press department of the Ministry of Culture. Hadi Afarideh, Shahnam Bazdar, Mojtaba Mirtahmasb, Naser Saffarian, Katayoun Shahabi, Mohsen Shahrnazar, and Mehran Zinatbaksh were charged with providing the BBC material deemed damaging to the regime. Bazdar was released soon after his detention. Authorities released Afarideh, Saffarian, and Shahrnazar on October 10 on bail of two million toman (\$2,000) each; Shahabi and Zinatbaksh were released on November 10. Mirtahmasb was reportedly released on December 11 on bail of two million toman (\$2,000).

There were developments in two cases from previous years.

On May 31, a court added another year onto *Bahar Ahvaz* reporter Abolfazl Abedini Nasr's 11-year prison sentence for crimes of "propaganda against the regime." The reasons for this additional sentence were not disclosed. In February 2010 security officials beat and arrested Abedini and transferred him to Evin Prison, where he reportedly underwent harsh torture during interrogation, resulting in severe heart damage. In April 2010 Branch One of the Revolutionary Court sentenced him to 11 years in Karoun Prison in Ahvaz for association with foreign governments, membership in the NGO Human Rights Activists of Iran (HRAI), and "propaganda against the regime" based on his interviews with foreign media. During the year authorities denied him medical furlough and family visits.

On June 20, the ICHRI reported that prison authorities allowed Hangameh Shahidi, an imprisoned journalist, women's rights activist, and single mother, medical leave for the first time in eight months. A women's issues adviser to then presidential candidate Mehdi Karroubi during the 2009 elections, Shahidi was imprisoned in 2009 on a six-year sentence for "gathering and colluding with the intent to harm state security" and "propaganda against the regime."

Censorship or Content Restrictions: The law forbids government censorship, but it also forbids disseminating information that the government considers "damaging," and during the year the government censored publications--both reformist and conservative--that were critical of government actions or contradicted the official version of a story. "Damaging" information included discussions of women's rights, the situation of minorities, and certain economic affairs. Government officials also routinely intimidated journalists into practicing self-censorship. Public officials often lodged criminal complaints against reformist newspapers, and the PSB referred such complaints to the Media Court for further action, including closure and fines. The court conducted its hearings in public with a jury of appointed clerics, government officials, and editors of government-controlled newspapers. Some human rights groups asserted that the increasingly conservative Media Court assumed responsibility for cases before PSB consideration.

The government banned coverage of the April crackdown on the Arab minority protests in Khuzestan (see section 6, National/Racial/Ethnic Minorities) and denied both international and local media access to the scene of the protests.

The August 2010 ruling by the Ministry of Culture and Islamic Guidance, which bans the publication of any news or information related to opposition figures Mehdi Karroubi and Mir-Hossein Mousavi and former president Mohamad Khatami, reportedly continued in force.

Libel Laws/National Security: The government commonly used libel laws or cited national security to suppress criticism. According to the law, if any publication publishes articles containing insult, libel, false statements, or criticism of an individual, the individual has the right to respond in the publication within one month. However, if the libel, insults, or criticism involves Islam or national security, the individual can be charged with apostasy and crimes against national security, respectively. The government liberally applied the press law throughout the year, often citing statements made in various media outlets or Internet platforms that criticized the government in any way to arrest, charge, and sentence individuals for crimes against national security. During the year the government used national security laws to prosecute journalists and individuals who gave interviews to Western media, including journalist Hassan Fathi, arrested after an interview with BBC Persian.

At the end of January a court sentenced Mostafa Daneshjoo, Farshid Yadollahi, and Amir Eslami, lawyers and members of the Human Rights Commission of the Bar Association, to six months in prison for disturbing public opinion and libel based on their legal work with the Gonabadi dervishes. The charges were based on their dissemination of information regarding violations that security and intelligence officials committed against their clients. Despite their defense and no proof of malintent in their case, the government found them guilty of libel and creating public anxiety. In September security forces arrested the three, along with at least one other colleague. At year's end they were in the security ward of Evin Prison.

On October 5, according to the CPJ, authorities arrested four reformist newspaper journalists--Medhi Afsharnik, Ali Akrami, Mohamed Heydari, and Mohsen Hakim--in their homes and took them to Evin Prison. All were charged with "propaganda against the regime" and "acting against national security." All had their homes ransacked and personal items confiscated. They were reportedly released on bail on October 29. At year's end their cases were pending.

There were developments in three cases from the previous year. On July 20, prison authorities summoned Mashallah Shamsolvaezin, head of the journalists' association and a prominent reform journalist, to serve out his 16-month sentence. In December 2010 Branch 28 of the Tehran Revolutionary Court sentenced Shamsolvaezin to 16 months in prison for "insulting the president" and "weakening" the government, based on interviews he gave to international media. Shamsolvaezin's attorney, Mohammad Seifzadeh, was serving a nine-year sentence in prison and banned for life from practicing law for his role in founding the DHRC (see section 5) and was therefore unable to defend his client.

On May 5, Ali Malihi, a journalist for reformist outlets *Etemad*, *Irاندokht*, *Shahrvand-e-Emruz*, and *Mehrnameh*, was released on bail. Malihi was arrested in February 2010. According to the CPJ, a revolutionary court tried and sentenced him to four years in prison for “congregation and mutiny against the regime,” “propagation against the regime,” “participation in illegal gatherings,” “publication of falsehoods,” and “insulting the president.” The CPJ reported he was held in solitary confinement for 14 months in Evin Prison and went on at least one hunger strike to protest his treatment.

On March 2, authorities rearrested journalist and activist Mahboubeh Karami, her fifth arrest in three years (see section 6, Women).

Internet Freedom

All Internet service providers (ISPs) must be approved by the Ministry of Culture and Islamic Guidance. The government also requires all owners of Web sites and blogs in the country to register with the Ministry of Culture and Islamic Guidance, which along with the Ministry of Communications and Information Technology, Ministry of National Security, and Tehran Public Prosecutor’s Office, were represented on the Committee in Charge of Determining Unauthorized Web Sites, the governmental organization that determines blocking criteria. The same laws that apply to traditional press also apply to electronic media, and the PSB and judiciary used the law to close Web sites during the year. NGOs reported that the government continued to increase its control over the Internet during the year as more citizens used it as a source for news and political debate. In March the government announced plans to create a national Intranet to replace the Internet. At year’s end this had not occurred, but there was increasing government rhetoric publicizing the system’s imminent release.

On November 1, the government established the “Cyber Command” under the IRGC, replacing and strengthening the “Cyber Army.” Like its predecessor, the Cyber Command was officially charged with monitoring, identifying, and countering cyberthreats against national security, and it had recruited and trained at least 2,000 members at year’s end. In practice the organization harassed individuals who spoke out against human rights violations committed by the government or criticized the government in any way, including raising sensitive social issues. On August 28, the Cyber Army created a fake e-mail certificate authority, exposing the personal details of more than 400,000 Gmail account holders and putting the lives of many political opposition, human rights activists, and defenders in jeopardy.

Through the Cyber Army and Cyber Command, the government monitored Internet communications, especially social networking Web sites, such as Facebook, Twitter, and YouTube, and collected individuals’ personally identifiable information in connection with peaceful expression of views. Freedom House and other human rights organizations reported that authorities sometimes stopped citizens at Tehran International Airport as they arrived in the country, asked them to log into their YouTube and Facebook accounts, and in some cases forced them to delete information.

According to the RSF, the government blocked access to thousands of Web sites during the year, and in some cases ISPs redirected computer users to progovernment news sites. The government also intentionally reduced Internet speed to discourage residents from downloading material. By order of the Ministry of Communications and Internet Technology, households and cybercafes are prohibited from having high-speed access. During the year and especially during periods prior to the anniversaries of the Islamic Revolution (February 11), the 2009 presidential election (June 12), and Students’ Day (December 7), and in anticipation of the February 14 and 15 protests, authorities slowed Internet speed, further reduced access to Facebook, Twitter, and Gmail, and blocked opposition Web sites, including that of former president Rafsanjani. The Cyber Army and Cyber Command used sophisticated filtering technology to rapidly respond to newly published Web content. On February 22, the Cyber Army hacked into the VOA and 95 affiliated Web sites to protest their “immoral” messages. On each of the sites that it hacked into, an Iranian flag and gun were displayed. The Reuters and Yahoo! Web sites were allegedly censored and periodically blocked since the early spring. Google was reportedly partially blocked and Gmail periodically interrupted. According to reports from early July, the government had banned more than five million sites, including social media sites and foreign news sites such as BBC and CNN. Internet NGOs reported that the government was attempting to block Internet users’ access to circumvention technology. The government also censored Web site content to control citizens’ access to information. According to Freedom House, content from opposition leaders’ Web sites was deleted during the year.

During the year the government prosecuted and punished several bloggers and webmasters for peaceful expression of dissenting views through the Internet.

On January 24, a revolutionary court sentenced journalist, blogger, and IRNA reporter Siamak Ghaderi to four years in prison on charges of participating in and reporting on public gatherings and “propaganda against the regime” for calling the government “illegitimate.” According to RAHANA, authorities detained Ghaderi in August 2010. Authorities reportedly stated that he would be released only if he guaranteed he would publish articles in support of the government and the supreme leader on his blog, Our IRNA, a critique of the government-run news agency. On November 24, he published an open letter from prison regarding harsh and inhumane conditions, as well as the poor treatment he and other journalists had received from presidential media adviser and IRNA chief Ali Javanfekr. At year’s end Ghaderi remained in prison.

According to HRANA, on June 15, Branch 15 of the Revolutionary Court sentenced Mostafa Akhavan, a student at Tehran’s aerospace university and member of the National Trust Party, to one year in prison for “action against national security” and “propaganda against the system” for his postings on Facebook, including news about the Green Movement and a call for an illegal gathering, an interview he conducted with foreign media, and for the antiregime content of his e-mails. Since Akhavan did not have a record, the prison sentence was suspended for five years.

There were developments in several cases from previous years. On June 15, Branch 28 of the Revolutionary Court in Tabriz sentenced Hanieh Farshi, arrested in her home in July 2010 in eastern Azerbaijan Province, to seven years in prison for blasphemy and “propaganda against the regime,” based on Internet activities, including private e-mails. Her conviction was based upon a confession reportedly made while in solitary confinement and under physical and psychological torture. Authorities did not permit her lawyer to be present in court. At year’s end she was thought to be in Evin Prison.

In December 2010 authorities released student blogger Navid Mohebbi from Sari Prison after a Revolutionary Court sentenced him to a three-year suspended sentence for membership in and support for the One Million Signatures campaign (see section 6, Women), “acting against national security,” “propaganda against the state” through connection with foreign media, insulting the founder of the Islamic Republic, and insulting the supreme leader. Mohebbi’s trial took place behind closed doors; not even his lawyer attended.

On June 9, an appeals court confirmed a 19-year prison term against blogger and dual Iranian-Canadian citizen Hossein Derakhshan; he was also banned from political or journalistic activities for five years. At year’s end he reportedly remained in Evin Prison. Authorities arrested Derakhshan in 2008 while he was visiting the country and allegedly subjected him to psychological and physical abuse in detention, according to the HRAI.

Academic Freedom and Cultural Events

The government significantly restricted academic freedom and the independence of higher education institutions. In March 2010 Minister of Science, Research, and Technology Kamran Daneshjoo stated that only those who have proven commitment to Islam and the “rule of the jurisprudent” (velayat-e-faqih) can teach or study at universities. To be admitted to university, applicants had to pass “character tests” in which officials eliminated applicants critical of the government’s ideology and gave advantages to Basij members. Authorities systematically targeted university campuses to suppress social and political activism, including banning independent student organizations, imprisoning student activists, purging faculty, depriving targeted students from enrolling or continuing their higher education based on political or religious affiliation or activism, and restricting social sciences and humanities curricula.

The 2010 restrictions placed on humanities programs in universities increased throughout the year, including the severe restrictions on social sciences education, and the barring of universities from opening new departments of law, philosophy, management, psychology, political science, women’s studies, or human rights.

Authorities relied on university disciplinary committees to suspend, transfer, or expel enrolled students based on social and political activism, involvement in student publications, or participation in student associations. Student groups reported that a “star” system inaugurated by the government in 2005 to rank politically active students was still in use. Students deemed

antigovernment through this system reportedly were prevented from registering for future terms. Repeated suspensions through this mechanism resulted in effectively denying the rights of targeted students to complete or continue their studies. Numerous student activists were expelled from their respective schools during the year for political activities, including nonviolent protest. Student activists reported increased crackdowns at universities, on both students and teachers, by security authorities in the wake of the February protests. During the year Ministry of Intelligence agents used threats, intimidation, and arrests to silence students who attempted to seek accountability and legal justification for their deprivation from higher education. For example, on March 2, the Shiraz University disciplinary committee suspended more than 200 students for a minimum of two semesters for participating in a commemoration of a classmate killed during the February protests.

Authorities continued to dismiss university professors in accordance with a 2006 presidential call for the removal of secular and liberal professors. To obtain tenure professors had to refrain from criticizing authorities. According to the ICHRI, university officials dismissed or forced the retirement of more than 50 university faculty members in 2010 for their affiliation with or support of the Green Movement. Universities across the country dismissed faculty throughout the year for their roles in the 2009 postelection protests and ties to political opposition. As a result university research was severely constrained. Professors must approach topics such as the situation of women, feminism, minority history, and societal ills--such as drug abuse or domestic violence--from the government-sanctioned "Islamic" perspective or risk punitive action, such as dismissal.

On May 29, according to IRNA, Minister of Science for Higher Education Kamran Daneshjoo stated, "[T]he dignity of humans is not an absolute freedom, but it is what one must do and must not do and if this is taken away, it will reach the absolute freedom that animals have... [I]f universities do not move in the right path, they will present scientists to society, but anti-Islamic scientists are definitely not needed in society."

According to the ICHRI, on January 21, the classes of Mohamed Sharif, a lawyer and legal professor for 25 years at Allameh Tabatabaee University, were cancelled unexpectedly. Sharif was formally dismissed in early April from his faculty position by the head of the university administration due to his representation of human rights activists, including other previously dismissed university professors, following the 2009 election protests.

In mid-March the Tehran University administration suspended Sajjad Rezaie, head of its Islamic Association and a member of its art faculty, from his teaching duties pending a ruling by the school's disciplinary committee. Rezaie had told the media that student Saneh Jaleh, who was shot and killed during the February 14 protests, was a member of Mousavi's presidential campaign, not a Basij member as had been reported (see section 1.a.).

The government strictly enforced laws relating to cultural events, and there was a significant increase in the number of artists, actors, and filmmakers detained during the year. The government banned some forms of music, including heavy metal, and maintained stringent controls on cinema and theater. In June 2010 the government announced a ban on music education in private schools, already banned in public schools, and in August 2010 the media reported that the supreme leader advised against the practice and teaching of music in general, although music continued in the media at year's end. The government continued to ban broadcasting of certain music genres and continued to crack down on concerts and underground music groups, such as heavy metal or similar foreign music, considered religiously illegitimate.

On May 31, the regime censored the work of singer and composer Hossein Zaman, whose latest album, *Prison*, included political and social themes deemed unfit for distribution. The Ministry of Culture and Islamic Guidance also banned Zaman from holding concerts in the country.

As the main source of production funding, the government effectively censored domestic filmmaking. Producers were required to submit scripts and film proposals to government officials in advance of funding approval. Movies promoting secularism, feminism, unethical behavior, drug abuse, violence, or alcoholism were illegal, and some domestic directors were blacklisted (restricted and sanctioned). On December 11, the Ministry of Culture filed a lawsuit against the House of Cinema

(IHC), the motion picture guild for the country, claiming that the IHC had made amendments to their charter that had not been approved by the government. On December 28, the Council of Public Culture declared the organization illegal. The IHC said that these were false charges; at year's end the trial had not begun.

On June 26, security agents arrested women's rights activist and documentary filmmaker Mahnaz Mohammadi in her home. Mohammadi directed the film *Women without Shadows* and other banned films and contributed to commentaries about the country's disputed 2009 presidential election. She was released on July 27 on one million toman (\$1,000) bail.

On October 10, after being imprisoned for more than two months, actress Marzeih Vafamehr was sentenced to an additional year in prison and 90 lashes for her role in the now-banned movie *My Tehran for Sale*, which was critical of the regime and in which she was not wearing a headscarf. *Shargh* newspaper reported that she was released on October 26.

b. Freedom of Peaceful Assembly and Association

Freedom of Assembly

The constitution permits assemblies and marches "provided they do not violate the principles of Islam." In practice the government restricted freedom of assembly and closely monitored gatherings to prevent antigovernment protests. Such gatherings included public entertainment and lectures, student and women's meetings and protests, labor protests, online gatherings and networking, funeral processions, and Friday prayer gatherings. According to activists, the government arbitrarily applied rules governing permits to assemble, with conservative groups rarely experiencing difficulty and groups viewed as critical of the government experiencing harassment regardless of whether a permit was issued.

The government continued to prohibit and forcibly disperse peaceful demonstrations during the year. Paramilitary organizations such as Ansar-e Hizballah also harassed, beat, and intimidated those who demonstrated publicly for reform. They particularly targeted university students.

Beginning February 8, security forces arrested more than 30 opposition activists in anticipation of planned demonstrations in solidarity with protesters in Egypt and Tunisia. Among those arrested according to opposition news outlets were Mohammed-Hossein Sharifzadegan, an official in former president Khatami's administration and Mousavi's brother-in-law; Taghi Rahmani, a member of the reformist Nationalist-Religious Movement; Yadollah Eslami, a former reformist Majlis member; Korough Ziam, a member of the proreform National Front; and Abdollah Naseri, a Khatami ally and member of the reformist Mojahedin of the Islamic Revolution. Authorities released Sharifzadegan, Eslami, and Zaim after more than a month in detention. Rahmani was freed on 150 million toman (\$150,000) bail on September 21 but faced a ban on foreign travel. Authorities also released Naseri, but on October 27, he was sentenced to five years in prison on charges of "collusion" and "assembly" against the state.

Despite the arrests, nonviolent demonstrators protested in the streets of Tehran and other cities in February and March to show support for prodemocracy movements in neighboring countries and to protest the arrests and detention of opposition leaders. The Basij forces reacted violently and forcibly cracked down on the demonstrations, leading to hundreds of arrests and at least three deaths. In June security forces again intimidated and suppressed demonstrators, this time marking the two-year anniversary of the disputed 2009 presidential election. Multiple press accounts reported scenes of police chasing protesters with clubs, deploying tear gas, and making numerous arrests at a silent rally in Tehran.

In August and September authorities conducted mass arrests in the Azerbaijan region following demonstrations by environmental activists protesting the government's poor management of Lake Urmia, the world's third-largest saltwater lake. Sources told HRW that authorities arrested approximately 300 demonstrators in Tabriz on August 27, following protests and clashes with police. On September 3, dozens of others were arrested in the region after local activists called for additional demonstrations. At year's end there was no information regarding how many protesters had been released.

Freedom of Association

The constitution provides for the establishment of political parties, professional associations, Islamic religious groups, and organizations for recognized religious minorities, as long as such groups do not violate the principles of “freedom, sovereignty, and national unity” or question Islam as the basis of the Islamic Republic. The government limited freedom of association in practice through threats, intimidation, imposing arbitrary requirements on organizations, and arresting group leaders and members.

On April 14, the Khabar Web site, affiliated with Majlis speaker Ali Larijani, reported that the Majlis Committee for Political Parties Affairs had requested that the prosecutor general of Tehran ban two reformist organizations, Mosharekat Front and Revolutionary Mojahedin, due to their involvement in the 2009 election protests. The heads of both organizations had been in custody since 2009.

At year’s end Mohsen Barzegar remained in Evin Prison (see section 1.e., Political Prisoners and Detainees).

The government continued to exert significant pressure on members of the DHRC (see section 5).

The journalists’ union and other labor-related groups also continued to face problems during the year (see section 7.a.).

c. Freedom of Religion

See the Department of State’s *International Religious Freedom Report* at 2009-2017.state.gov/j/drl/irf/rpt (2009-2017.state.gov/j/drl/irf/rpt).

d. Freedom of Movement, Internally Displaced Persons, Protection of Refugees, and Stateless Persons

The constitution provides for freedom of movement within the country, foreign travel, emigration, and repatriation. The government placed some restrictions on these rights. The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) with regard to refugees from Afghanistan and Iraq.

In-country Movement: Women faced difficulties traveling independently, especially in rural areas, where they faced significant official and unofficial harassment for traveling alone. Rural women’s freedom of movement outside the home or village was particularly restricted, often requiring a male guardian’s permission or a male chaperone.

Foreign Travel: The government required exit permits for foreign travel for all citizens. Some citizens, particularly those whose skills were in demand and who were educated at government expense, had to post bond to obtain an exit permit. The government also restricted foreign travel of some religious leaders and members of religious minorities and scientists in sensitive fields. It also increasingly targeted journalists, academics, opposition politicians, and activists—including women’s rights activists—for travel bans and passport confiscation during the year.

In January, for example, authorities banned Mohammad Baqer Qalibaf, the mayor of Tehran, from traveling to the United States to receive an award for advancing sustainable transportation. In March authorities banned former president Mohammad Khatami from traveling to Ireland to attend a political seminar.

A woman must have the permission of her husband, father, or other male relative to obtain a passport. A married woman must receive written permission from her husband before she leaves the country.

Exile: The government did not use forced external exile, but many dissidents practiced self-imposed exile to be able to express their beliefs freely. In addition the government often placed prisoners in facilities far from their homes to prevent family visits; they called this placement “exile.”

Protection of Refugees

Access to Asylum: The country's laws provide means for granting asylum or refugee status to qualified applicants. While the government reportedly had a system for providing protection to refugees, the UNHCR did not have any information as to how the country made asylum determinations.

Refugee Abuse: According to reports, 30 provinces were partially or fully closed to refugees. Authorities generally required registered Afghan refugees in these "no-go areas" to choose either to relocate to refugee settlements, sometimes in other parts of the country, or to repatriate. In 2010-11 approximately 24,000 Afghans voluntarily repatriated; however, the vast majority said they were under pressure to return due to the government's no-go areas policy as well as from fear of the government. During the year the government executed dozens of undocumented Afghans, predominantly on drug-related charges and often without due process.

Employment: Registered refugees were able to obtain permits to work in the country. According to the UNHCR, in June the authorities extended the validity of Amayesh residency permits to one year and linked them to the issuance of work permits for Afghan refugees.

Access to Basic Services: Registered refugees received free primary health care from the Ministry of Health with UNHCR support. In May the UNHCR launched a health insurance plan to help refugees maintain access to secondary and tertiary medical care as costs rise. Some asylum seekers did not have identification cards and were unable to benefit from basic government subsidies for food, health care, insurance, and housing. According to the UNHCR, in June authorities began reregistering Afghan refugees, extending the validity of their identification cards to one year. The government also identified vulnerable refugees to be granted exemptions from payment of municipality taxes and school tuition fees, which are normally obligatory without exceptions.

Stateless Persons

Women cannot directly transmit citizenship to their children or to a noncitizen spouse. According to media reports, there were officially 30,000 female citizens married to Afghan men, although the unofficial number was likely much higher. As a result there were more than 32,000 children not recognized by the government and without identification cards, making them effectively stateless and barred from receiving government support, education, health care, or travel documents (see section 6, Children).

Section 3. Respect for Political Rights: The Right of Citizens to Change Their Government

The constitution provides citizens the right to peacefully change the president and the Majlis through free and fair elections, but the authority of unelected representatives over the election process severely abridged this right in practice. The Assembly of Experts elects the supreme leader, the recognized head of state, who may be removed only by a vote of the assembly. The supreme leader exercises influence over the government appointments of the 12 clerics and religious jurists who make up the Guardian Council. The Guardian Council then approves the list of candidates for the Assembly of Experts, whose 86 members must also be clerics, who serve eight-year terms and are chosen by popular vote. There was no separation of state and religion, and clerics had significant influence in the government. The supreme leader also approved presidential candidates.

Elections and Political Participation

Recent Elections: In 2009 the country held a presidential election, which outside observers regarded as neither free nor fair. International observers were not allowed entry to monitor the election results. The Guardian Council approved only four of more than 450 prospective candidates, including 42 women and former officials. No women were approved to run as candidates. Authorities increased censorship and surveillance during the campaign, blocking cellular telephone signals and access to social networking and opposition Web sites. The government also harassed and arbitrarily arrested political activists, members of the country's religious and ethnic minority communities, students, trade unionists, and women's rights

activists during the preelection period (see section 1.e., Political Prisoners and Detainees). Anecdotal evidence suggested that authorities forced some election observers representing opposition candidates to leave polling stations and that millions of unused paper ballots disappeared. Before all polls closed and ballot counting had commenced, government-controlled media announced that President Ahmadinejad had been reelected in the first round of elections, obtaining a majority of the votes. Contrary to the election law, Khamenei approved the election results before the Guardian Council certified the election and before the Interior Ministry announced the final results. Independent analysts studied election data and concluded there were a number of irregularities, including at least two provinces showing a turnout of more than 100 percent in some districts and the absence of longstanding regional variations in turnout, which appeared abnormal despite regulations that allow voters to use any polling station. On November 20, Ali Saeedi, the supreme leader's representative to the IRGC, reportedly stated that those who challenged the 2009 election results were "worthy of death" and that the IRGC and the Basij should not have "any hesitations" about crushing them.

Majlis elections were scheduled for March 2012. In preparation for the elections, the government increased actions and rhetoric against the opposition. In a January 5 press statement, the chief of the Guardian Council, Ayatollah Ahmad Jannati (http://en.wikipedia.org/wiki/Ahmad_Jannati), stated that it was better for the opposition to "stay out of the political arena." He further stated on February 11 in a public address on the anniversary of the 1979 Islamic Revolution that the council "will not allow any unsavory individuals to obtain the smallest position in the country, regardless of their popularity."

Political Parties: The constitution allows for the formation of political parties; however, the Interior Ministry granted licenses only to parties with ideological and practical adherence to the system of government embodied in the constitution. There were more than 230 registered political organizations that generally operated without restriction or outside interference, but most were small entities, often focused around an individual, and did not have nationwide membership. Members of political parties and individuals with any political affiliation that the government deemed unacceptable faced harassment, violence, and sometimes imprisonment. Reformist university students and professors faced dismissal (see section 2.a., Academic Freedom and Cultural Events).

The government banned several opposition organizations and political parties during the year. For example, in March authorities banned the Assembly of Lecturers and Scholars of Qom Seminary, a clerical organization formed by supporters of former reformist president Mohammad Khatami. Also, on November 4, the election office banned three reformist political parties from participating in the March 2012 legislative elections. The Islamic Participation Front, Islamic Revolution Mujaheddin Organization, and Freedom Movement of Iran allegedly did not have the licenses required to run for the Majlis. The Islamic Participation Front and the Islamic Revolution Mujaheddin Organization were banned in September 2010 after they protested the controversial results from the 2009 presidential elections.

Security officials continued a campaign of harassment, intimidation, and arrests against members of the political opposition (see also section 1.e., Political Prisoners and Detainees). Many analysts indicated such tactics were carried out in an effort to further stifle dissent in advance of the anticipated March 2012 Majlis elections.

For example, on November 3, authorities arrested Mohammad Tavassoli, head of the political bureau of the Freedom Movement in connection with an October 15 letter to Mohammad Khatami, signed by 143 political activists, warning Khatami about their lack of hope for free or fair elections. Tavassoli, a former mayor of Tehran, was previously arrested after the disputed 2009 elections. Relatives told the ICHRI that authorities were pressuring Tavassoli's relatives not to talk to the media about him. At year's end he was being held incommunicado.

Former presidential candidates Mehdi Karroubi and Mir Hossein Mousavi were being held under de facto house arrest since 2009 (see section 1.d., Arbitrary Arrest and Detention).

Participation of Women and Minorities: According to the Guardian Council's interpretation, the constitution barred women and persons of non-Iranian origin or religions other than Shia Islam from becoming president or from running in parliament. Women were also barred from serving as supreme leader; as members of the Assembly of Experts, Guardian Council, or

Expediency Council (a body responsible for mediating between the Majlis and the Guardian Council and serving as a consultative council for the supreme leader); and as certain types of judges (see section 6, Women). On November 20, ISNA reported that Minou Kianirad was appointed the first female deputy governor of the central bank since the 1979 revolution. Four women served in the cabinet: the vice presidents for legal affairs and science and technology, the minister of health, and the head of the National Youth Organization. Eight women, in a total of 290 seats, served in the Majlis during the year.

Five Majlis seats were reserved for recognized religious minorities. Other ethnic minorities in the Majlis included Arabs and Kurds. There were no non-Muslims in the cabinet or on the Supreme Court.

Section 4. Official Corruption and Government Transparency

The law provides criminal penalties for official corruption, but the government did not implement the law effectively, and official corruption and impunity remained a serious and ubiquitous problem in all three branches of government. Many officials expected bribes for providing even routine service. Individuals routinely bribed officials to obtain permits for illegal construction.

According to Freedom House, the hardline clerical establishment grew wealthier through its control of “bonyads,” tax-exempt foundations that monopolize many sectors of the economy, such as cement and sugar production. Bonyads receive benefits from the government but are not required to have their budgets publicly approved.

All government officials, including cabinet ministers and members of the Guardian Council, Expediency Council, and Assembly of Experts, were required to submit annual financial statements to the state inspectorate. There was no information available regarding whether these officials obeyed the law.

Numerous government agencies existed to fight corruption, including the Anticorruption Headquarters, Anticorruption Task Force, Committee to Fight Economic Corruption, and General Inspection Organization.

The IRGC operated numerous front companies that were engaged in illicit trade and business activities. The IRGC includes a construction arm (Khatam ol-Anbiya) that had extensive economic operations and ties to the oil sector and benefited from corruption within that sector. The IRGC also had economic interests in the telecommunications, construction, and mining sectors and direct access to the country’s foreign exchange reserves.

On July 31, Ahmad Ghaleh Bani, director of the National Iranian Oil Company and deputy oil minister, stated that Khatam ol-Anbiya had been awarded approximately 2.5 trillion toman (\$2.5 billion) in contracts to develop the country’s oil and gas sector since 2009 and that most of these contracts were awarded without bidding, according to numerous press accounts. On August 3, the Majlis approved President Ahmadinejad’s choice, Rostam Qassemi, to be the new oil minister; he previously served as the head of Khatam ol-Anbiya. This appointment resulted in additional no-bid contract awards for Khatam ol-Anbiya.

The oil sector was embroiled in financial scandal throughout the year. In May opposition Web sites reported that on March 10, Khamenei decreed that all oil and gas contracts would be awarded by Petro Nahad, a new entity established within his office and not subject to parliamentary or regulatory oversight. All revenues would be deposited into an account belonging to that organization. Further, according to these reports, all administrative and financial decisions of Petro Nahad were to be controlled by a three-person board of directors, whose members included Khamenei’s son, Mojtaba Khamenei, and Gholamali Haddad Adel, a member of the Expediency Council and Mojtaba’s father-in-law.

On March 18, reformist publications reported the alleged disappearance of 124 billion toman (\$124 million) in oil revenues from government foreign exchange reserves. According to reports, Majlis members formed a commission to investigate what had become of some 48 billion toman (\$48 million) in missing oil revenues from the state-owned petroleum sector. Another 68

billion toman (\$68 million) in receivables from foreign oil purchasers had disappeared as well, according to a member of the Majlis Energy Committee. There were no updates on the status of this investigation or any reports stemming from it by year's end.

The banking sector was also plagued by scandal and corruption during the year. In September the media uncovered the embezzlement of 2.6 trillion toman (\$2.6 billion) during a two-year period by the financial conglomerate Amir Mansour Arya Investment Development Company, established in 2004 with \$50,000 in capital. The owners of the organization obtained allegedly falsified letters of credit to obtain additional financing. The Arya Group was accused of using the loans to purchase assets of privatized state-owned enterprises.

On October 30, a member of the Majlis investigative commission read its report on the banking scandal in open session and sent it to the judiciary for prosecution of those found guilty of crimes. Although the report did not shed new light on the investigation, it suggested the deputy minister of economic affairs and the deputy head of the Central Bank were the two highest-level officials responsible for the affair and should either be fired or resign. On November 28, the chief prosecutor stated that more than 50 suspects had been indicted and that 40 companies had been found to harbor unreported debts and irregularities connected with the fraud. By year's end at least 48 people had been arrested in connection with the case, including the son of President Ahmadinejad's chief of staff and the deputy head of the Central Bank, Hamid Pourmohammadi. In addition, a deputy minister of finance and economy, Asghar Abolhassani Hastiani, was forced to resign; the chief executive officer of Bank Melli, Mahmoud Reza Khavari, resigned and fled to Canada; and the head of Bank Saderat, Mohammad Jahromi, resigned. Minister of Economy Shamsoddin Hosseini survived a Majlis impeachment vote on November 1.

On October 31, the Majlis Social Security Investigative Committee reported further financial violations. Chairman Soleiman Jafarzadeh said his committee had unearthed financial violations totaling one trillion toman (\$1 billion) at 150 subsidiaries of the Social Security Investment Company, which managed the Social Security Investment Fund and the Civil Servants Pension Fund. At year's end no action had been taken on this report.

First Vice President Mohammad Reza Rahimi remained in his position, although an investigation into his alleged corruption continued.

There were no laws providing for public access to government information.

Section 5. Governmental Attitude Regarding International and Nongovernmental Investigation of Alleged Violations of Human Rights

The government restricted the work of human rights groups and activists and often responded to their inquiries and reports with harassment, arrests, monitoring, unlawful raids, and closures (see also sections 1.d., 1.e., 2.a., 6, and 7). The government continued to deny the universality of human rights and stated that human rights issues should be viewed in the context of a country's "culture and beliefs."

Hundreds of domestic NGOs focused on issues such as health and population, women's rights, development, disability, youth, environmental protection, human rights, minority rights, and sustainable development, despite the restrictive environment, including pressure not to accept foreign grants. Professional groups representing writers, journalists, photographers, and others attempted to monitor government restrictions in their respective fields, as well as harassment and intimidation against individual members of their professions. Under the law NGOs must register with the Interior Ministry and apply for permission to receive foreign grants. According to various sources, independent human rights groups and other NGOs faced intensifying harassment and threat of closure from government officials as a result of prolonged and often arbitrary delays in obtaining official registration.

During the year the government prevented human rights defenders, civil society activists, journalists, and scholars from traveling abroad (see section 2.d.). Human rights activists reported receiving intimidating phone calls and threats of blackmail from unidentified law enforcement and government officials. Government officials routinely harassed and sometimes arrested family members of human rights activists (see section 1.f.). Courts routinely applied suspended sentences to human rights activists; this form of sentencing acted as de facto probation, leaving open the option for authorities to suddenly and arbitrarily arrest or imprison individuals. This threat was sometimes enough to silence activists or pressure them into providing information about other activists.

The government continued to exert significant pressure on the DHRC, an NGO headed by Nobel Peace Prize laureate Shirin Ebadi, and systematically harassed, arrested, and prosecuted lawyers and others affiliated with the organization. According to media reports in November, at least 40 lawyers had been arrested and imprisoned since the 2009 postelection protests. For example, on March 14, according to an interview with the BBC Persian service, Branch 26 of the Revolutionary Court sentenced Abdolreza Tajik, a journalist who prepared reports for the DHRC, to five years in prison for his membership in the organization and an additional one-year prison term for “propaganda against the regime.” At year’s end he remained in prison. On July 3, according to various human rights groups, Branch 15 of the Revolutionary Court sentenced Mohammad-Ali Dadkhah, a DHRC member and an attorney for several political activists, to nine years in prison, a 10-year ban from practicing as an attorney or teaching at a university, and five lashes. The charges against him included “propaganda against the regime” and “distortion of members of the regime,” as well as owning an illegal satellite dish. However, at year’s end Dadkhah reportedly continued to practice law. On September 10, security forces arrested DHRC founding member Abdolfattah Soltani, and at year’s end he remained in prison (see section 1.f.). On September 28, Branch 26 of the Revolutionary Court in Tehran sentenced Narges Mohammadi, the DHRC’s executive chairperson, to 11 years in prison for “propaganda against the regime.” At year’s end she remained in prison.

Despite numerous appeals, including from the UN, the government denied requests from all international human rights NGOs to establish offices in, or conduct regular investigative visits to, the country. The last visit by an international human rights NGO was AI’s 2004 visit as part of the EU’s human rights dialogue with the country.

UN and Other International Bodies: The International Committee of the Red Cross and the UNHCR both operated in the country with some restrictions. The last visit by a UN human rights agency was in 2005. The government generally ignored recommendations these bodies made and failed to submit required reports to the UNHRC or the UN Committee on Economic, Social, and Cultural Rights. The government ignored repeated requests for visits by UN special rapporteurs.

In March the UNHRC adopted a resolution establishing a new special procedure country mandate, which established a human rights rapporteur for the country. On June 17, the UNHRC appointed Ahmed Shaheed as the special rapporteur to fulfill the mandate; he officially commenced on August 1. The government repeatedly denied Shaheed’s requests to visit the country, preventing him from traveling to the country during the year. Iranian officials denounced his report as “one-sided,” outdated, and speculative, and they ignored his repeated calls for cooperation and access. The government undertook a media campaign during the year to undermine the mandate of the special rapporteur, including a Web site mimicking the women’s rights-focused One Million Signatures campaign but actually advocating opposition to the special rapporteur. The government also publicly criticized the report and the special rapporteur in the media frequently, along with the September report of the UN secretary-general condemning the depth and breadth of human rights abuses in the country.

On December 19, for the ninth consecutive year, the UN General Assembly adopted a resolution expressing concern about the country’s “serious ongoing and recurring human rights violations.”

Government Human Rights Bodies: The governmental High Council for Human Rights was headed by Mohammad Javad Larijani, the brother of Ali Larijani, speaker of the parliament, and Sadeq Larijani, head of the judiciary. The High Council is not an independent body; it is part of the judiciary. Larijani, a former Majlis member, was also an adviser to the supreme leader. The High Council in practice defended court rulings regarding imprisoned human rights activists, defenders, and opposition leaders throughout the year, despite domestic and international pressure. It did not establish any independent inquiries into

2009 postelection protest violence, and there was no instance of it challenging any laws or court rulings during the year. During the year Larijani defended the arrest and imprisonment of several high-profile human rights defenders, including Abdolfattah Soltani, and the house arrest of opposition leaders Mousavi and Karroubi at the UN and in media interviews on numerous occasions.

Section 6. Discrimination, Societal Abuses, and Trafficking in Persons

Although the constitution formally prohibits discrimination based on race, gender, disability, language, and social status “in conformity with Islamic criteria,” the government did not effectively enforce these prohibitions. The government increased gender segregation and discrimination against women throughout the year.

Women

Rape and Domestic Violence: Rape is illegal and subject to strict penalties including execution, but it remained a problem, and the government did not enforce the law effectively. There were reports of government forces raping individuals in custody (see sections 1.a. and 1.c.). Sex within marriage is considered to be consensual by definition, and therefore spousal rape is not illegal. Cases of rape were difficult to document due to social stigma against the victims. Most rape victims did not report the crime to authorities because they feared punishment for having been raped, as they could be charged with adultery for being in the presence of an unrelated male while unaccompanied, indecency, or immoral behavior. They also feared societal reprisal such as ostracism. According to the penal code, rape is a capital offense, and four Muslim male witnesses or a combination of three male and two female witnesses to the rape itself are required for conviction. The stringent witness requirement was also a possible reason for low reporting of rape to authorities. A woman or man found making a false accusation of rape is subject to 80 lashes.

According to the BBC, during the year there were several high-profile gang rapes. In one case, near the city of Isfahan, more than a dozen armed men reportedly entered a small private party, locked the men in a room, and took the women to an adjacent property and raped them at knifepoint. Four attackers were later arrested, but the town’s police commander reportedly stated, “I believe the raped women’s families are to blame, because if they had proper clothing and if the sound of their music was not so loud, the rapists would not have imagined it as a depraved get-together.” Reports indicated the victims may have faced legal action. At year’s end there was no public information on whether charges had been filed against the alleged attackers.

The law does not specifically prohibit domestic violence. Spousal abuse and violence against women was common. On November 4, the UNHRC issued a statement condemning the lack of laws protecting women from domestic violence as well as the lack of investigation, prosecution, and punishment of perpetrators of domestic violence. The Census Bureau, an official government agency, has precluded international organizations from performing studies of domestic violence in the country and has never conducted its own study of violence against women.

The director of the Iranian National Social Emergency Unit, physician Majid Arjomandi, told Pupils Association News Agency on November 1 that there were approximately 8,000 domestic violence cases reported to his organization. According to a University of Tehran study published on June 15, a woman is physically abused every nine seconds in the country, and an estimated three to four million women are battered each year by their husbands. One of every two marriages had at least one instance of domestic violence. Abuse in the family was considered a private matter and seldom discussed publicly, although there were some efforts to change this attitude, particularly by the One Million Signatures campaign. Some nongovernmental shelters and hotlines assisted victims during the year.

Harmful Traditional Practices: According to the law, if a father or paternal grandfather kills his child or grandchild, he will not be convicted and punished for murder. The law also permits a man to kill his adulterous wife and her consorts if he is certain she consented. Women convicted of adultery may also be sentenced to death, including by stoning. There were no official

reports of honor killings during the year, although human rights activists stated that they often occurred out of the public eye. There were also no reports of women being stoned for adultery, although there were women imprisoned for adultery during the year.

Sexual Harassment: There are laws addressing sexual harassment in the context of physical contact between men and women; however, these laws are not victim-oriented and are biased against women. Physical contact between unrelated men and women is strictly prohibited and is punishable by lashing. There was a lack of reliable data on the prevalence of sexual harassment in the country. Media reports indicated that unwanted physical contact and verbal harassment occurred. Government officials, however, often blamed women's sexuality for problems in society. For example, in April 2010 cleric Kazem Sadighi stated, "Many of the ladies who do not have a proper appearance cause the hearts of the youth to be swayed and they become defiled by sin, and this leads to the spread of adultery in society, which increases earthquakes."

Reproductive Rights: The law recognizes the basic right of married couples to decide freely and responsibly the spacing and timing of their first three children and have the information and means to do so free from discrimination, coercion, and violence. According to the law, health and maternity benefits are cut for the family after three children. There were no restrictions on the right of married persons to access contraceptives. It is illegal for a single woman to access contraception, although in practice women had access, particularly in urban areas. Couples who plan to marry must take a class in family planning. Men and women received equal access to diagnosis and treatment of sexually transmitted infections, including HIV. However, women requested testing less regularly than men, likely because of social stigma attached to doing so.

Discrimination: The constitution nominally provides women with equal protection under the law and all human, political, economic, social, and cultural rights in conformity with Islam; however, provisions in the Islamic civil and penal codes--based on Sharia--particularly sections dealing with family and property law, discriminate against women. Societal discrimination also restricted women's economic, social, and cultural rights. The governmental Center for Women and Family continued to publish reports on feminism with a very religious conservative slant and limited the debate on women's issues to matters related to the home. Ideas contrary to the government or to its interpretation of Islam were not raised by the center.

Women cannot directly transmit citizenship to their children or to a noncitizen spouse (see section 6, Children). According to media reports, there were officially 30,000 female citizens married to Afghan men, although the unofficial number was likely much higher (see section 2.d., Stateless Persons).

The government does not recognize marriages between Muslim women and non-Muslim men, irrespective of their citizenship.

The law states that a virgin woman or girl wishing to wed needs the consent of her father or grandfather or the court's permission, even if she is older than 18.

The law permits a man to have as many as four wives and an unlimited number of "sigheh," based on a Shia custom in which a woman may become the wife of a Muslim man after a simple religious ceremony and a civil contract outlining the union's conditions. Sigheh wives and any resulting children are not granted rights associated with traditional marriage.

A woman has the right to divorce only if her husband signs a contract granting that right, cannot provide for his family, or is a drug addict, insane, or impotent. A husband is not required to cite a reason for divorcing his wife. Traditional interpretations of Islamic law recognize a divorced woman's right to part of shared property and to alimony. These laws were not enforced. On June 21, the Supreme Court voted in favor of a law allowing women to withhold sex from their husbands if the husbands refuse to pay alimony. (Under the law alimony can be requested during the marriage as well as after a divorce.) According to ISNA, if the alimony is not paid, the wife can "reject all legal and religious obligations" to her husband. If the alimony is not paid after the divorce, the woman can sue her ex-husband in court. Despite this new ruling, the ability of a woman to seek divorce was still extremely limited in practice.

The law provides divorced women preference in custody for children up to age seven; divorced women who remarry must give the child's father custody. After the child reaches age seven, the father is entitled to custody (unless the father has been proven unfit to care for the child). The court determines custody in disputed cases.

Women sometimes received disproportionate punishment for crimes such as adultery, including death sentences (see sections 1.a. and 1.e., Trial Procedures). The testimony of two women is equal to that of one man. The blood money paid to the family of a female crime victim is half the sum paid for a man.

Women had access to primary and advanced education, and approximately 65 percent of university students were women. Government officials acknowledged the use of quotas to limit women's university admissions in certain fields such as medicine and engineering.

Social and legal constraints limited women's professional opportunities. Women were represented in many fields, including the legislature, municipal councils, police, and firefighters, but a woman must seek her husband's consent before working outside the home. Despite the high prevalence of women in universities, the unemployment rate for women was nearly triple that of their male counterparts. According to the World Economic Forum's 2011 report on the global gender gap, women in the country earned on average two-thirds of a man's salary for the same job. One Majlis member suggested that banning women from the workplace could solve the country's unemployment problems. Women cannot serve in many high-level political positions or as judges except as consultant or research judges without the power to impose sentences.

Women faced discrimination in home and property ownership, as well as access to financing. On September 14, a major construction development company, Mehr Housing, began refusing to allow women to buy property, requiring their husbands' name to be on the deed and mortgage.

The government enforced gender segregation in most public spaces, including for patients during medical care, and prohibited women from mixing openly with unmarried men or men not related to them. Women must ride in a reserved section on public buses and enter public buildings, universities, and airports through separate entrances. In a sermon honoring Fatemeh Zahra, daughter of the Prophet Mohammad, on May 5, grand ayatollah and Shiite legal authority Safi Golpaygani stated, "In the optimal situation, a woman will not see any other man except her husband." He added that such contact is "most unfortunate" and that the mingling of women and men is so prevalent that it leads to mental illness and moral corruption.

On July 3, Greater Tehran Law Enforcement Forces commander Hossein Sajedinia announced that, from July 11, women would not be allowed into coffee houses that provide water pipes. He stated the new measure had been decided "after repeated requests from the people, particularly families." Enforcement of morality laws became stricter after new "morality patrols" were deployed on June 15. Sajedinia threatened coffee house owners with prosecution if they did not adhere to the new code. On October 26, the Skating Federation announced that the country's roller skating tracks would be gender segregated and that female skaters who disregarded Islamic dress codes would be disciplined by authorities. On November 1, according to Shahrzad News, the Health Ministry relaunched an initiative to gender-segregate hospitals. According to the deputy health minister for patient care, Hasan Emami Razavi, "Every province will have a major general hospital for women only... [T]he one problem we have is that there are not enough women to drive the emergency ambulances." On November 14, police issued a directive banning women from skiing unaccompanied. Under the new measure, girls under 18 must be on the ski slopes with a parent, and those over 18 must be accompanied by their husbands.

For the first time, boys and girls had to sit in separate classrooms at universities when the new school year began in October. Majlis member Ali Karimi-Firouzjani, a member of the Majlis Education and Research Committee, stated: "The higher education minister has announced that some universities will hold separate courses for males and females in the new academic year. The grand ayatollahs and the families have warned against any contact between students of opposite sexes."

The penal code provides that a woman who appears in public without an appropriate hijab can be sentenced to lashings and fined. However, absent a clear legal definition of “appropriate hijab” or the punishment, women were subject to the opinions of disciplinary forces or judges. Pictures of uncovered or “immodestly” dressed women in the media or in films were often digitally altered.

According to the UN secretary-general’s report on the situation of human rights in the country, on May 9, the commander of the morality police forces disclosed that thousands of morality personnel had been deployed across the country to implement the moral security plan. On June 10, Ahmadreza Radan, deputy commander of the police force, announced that June 15 would usher in a new drive against un-Islamic female dress. Radan’s plan was expected to crack down harder on inappropriate public dress and dole out harder punishments for women that did not comply. According to the new rules, women who fail to comply with the harsher dress code standards will be imprisoned between 10 days to two months. Under these rules female students are banned from wearing bright clothes, having long nails or tattoos, wearing caps or hats without scarves, and wearing tight jeans or shorts.

The government continued its intense crackdown against members of the OMSC, which activists launched in 2006 to promote women’s rights, particularly by advocating reform of discriminatory laws. Several OMSC members remained under suspended prison sentences and travel bans, were in prison, or were in self-imposed exile at year’s end. For example, on May 11, security forces from the Intelligence Ministry arrested Mayram Bahreman, a civil society activist involved in the defense of women’s rights. Bahreman had been active in the OMSC in Shiraz. She was arrested along with Mahoubeh Karami (see below).

There were developments in several cases from previous years. In February, according to the Observatory for the Protection of Human Rights Defenders, Branch 54 of the Appeal Court of Tehran sentenced Mahoubeh Karami to three years’ imprisonment on charges of “membership in a human rights activists association” and “propaganda against the regime.” On May 15, after being rearrested, she entered Evin Prison, where she remained at year’s end.

In March 2010, according to the RAHANA, *Branch 15 of the Revolutionary Court acquitted Khadijeh Moghaddam on two counts of “propaganda activity against the regime” and disobeying police orders but sentenced her to a one-year suspended prison term for assembly and conspiracy with intent to act against national security. On December 18, she received a human rights award from the city of Bochum, Germany, for her work as a women’s rights activist and member of Mothers of Laleh Park, Mothers for Peace, and the OMSC. At year’s end Moghaddam was living in exile in Germany. In 2009 security forces detained Moghaddam for approximately one month with 11 other members from the OMSC and the NGO Mothers for Peace, including Mahboubeh Karami and Maryam Bahreman, as the group met to make traditional Nowruz (New Year) visits to families of several political prisoners. The ICHRI suggested that security and intelligence forces eavesdropped on the activists’ private communications to apprehend them. Bahreman was arrested May 11 and released on 250 million toman (\$250,000) bail September 15. Karami was arrested in March 2010 and detained for 170 days. On February 11, Karami was sentenced to three years in prison by Branch 54 of the appellate court of the Revolutionary Courts by Judge Movahed. Karami was charged with membership in a human rights organization, spreading of “propaganda against the regime,” and gathering and colluding with the “intent of harming national security.” She was arrested on May 15 to begin serving her three-year sentence. She was reportedly in poor health in Evin Prison and at risk of falling into a coma from her untreated anemia.*

Children

Birth Registration: Citizenship is derived from a child’s father, regardless of the child’s country of birth. In general, birth within the country’s borders does not confer citizenship except when a child is born to unknown parents; when both parents are noncitizens, but at least one parent was born in the country; or when a child born to noncitizens continues to reside in the country for at least one year after age 18. The birth registration law requires that all births be registered within 15 days. According to UNICEF, 13 percent of births were not reported in 2005; more recent statistics available were not available.

Education: Although primary schooling up to age 11 is free and compulsory for all, the media and other sources reported lower enrollment in rural areas for girls than for boys. This gender disparity is largely due to cultural differences from the urban centers, lower education among the parents, and stronger religious influence. More than 25 percent of refugee children of primary school age were not enrolled in school either due to the lack of identification cards or available places in schools (see section 2.d., Protection of Refugees and Stateless Persons).

Child Abuse: There was little information available to reflect how the government dealt with child abuse. Abuse was largely regarded as a private family matter. According to ISNA, more than 7,000 cases of child abuse were officially reported during the year. On December 13, the managing director of the Office for Protection of Vulnerable Citizens stated that his office received calls from more than 215,000 persons during the year, of which approximately 93,000 were calls directly from victims and an additional 47,000 were by medical professionals who treated emergency cases. In May 2010 the government announced that approximately 150,000 cases of child abuse had been recorded in the six months prior. A prominent attorney noted that the government did little to address the problem.

Child Marriage: The law requires court approval for the marriage of girls younger than 13 and boys younger than 15, but it was reportedly not unusual in rural areas for parents to have their children marry before they became teenagers, often for economic reasons. The age of criminal responsibility for girls is nine years, while the law does not consider boys criminally responsible until age 15. For example, if a 12-year-old girl accused a 14-year-old boy of rape, the 12-year-old girl would face any criminal penalties alone. Sex outside of marriage is illegal and is punishable by death, although the media reported that the common punishment was imprisonment and lashing. In December the director general of the Census Bureau in Hormozgan announced that there had been five marriages of girls under age 10 in his province. The government did not investigate these cases or begin any prevention campaigns, as these marriages were not considered illegal.

Sexual Exploitation of Children: Sex is considered consensual if it is within the confines of marriage. As such, the age requirements for marriage apply to consensual sex. The law prohibits all forms of pornography, including child pornography.

Children were trafficked within the country for commercial sexual exploitation, sometimes through forced marriages in which girls' new "husbands" forced them into prostitution and involuntary servitude as beggars or laborers to pay debts, provide income, or support drug addiction of their families. The government did not report any law enforcement efforts during the year to punish trafficking offenders and continued to lack any victim protection measures. Foreign victims of trafficking are, by government policy, detained and deported; citizens are either jailed or turned away by the police when they attempt to seek protection. The government made no discernible efforts to address the widespread government corruption that facilitated trafficking.

Child Soldiers: According to a March 12 article in The Guardian, human rights activists including the ICHRI reported that the government deployed child soldiers between the ages of 12 and 16 to attack opposition demonstrators beginning on March 1. The youths, whose accents led witnesses to say they had been shipped into Tehran from rural areas, were armed with clubs, batons, and air guns.

Displaced Children: There were reportedly significant numbers of children working as street vendors in Tehran and other cities and not attending school. International media sources reported there were as many as 250,000 street children in the country.

International Child Abduction: The country is not a party to the 1980 Hague Convention on the Civil Aspects of International Child Abduction. For information see the Department of State's report on compliance at travel.state.gov/abduction/resources/congressreport/congressreport_4308.html (http://travel.state.gov/abduction/resources/congressreport/congressreport_4308.html), as well as country-specific information at travel.state.gov/abduction/country/country_3781.html (http://travel.state.gov/abduction/country/country_3781.html).

Anti-Semitism

The government's anti-Israel stance, in particular the president's repeated speeches decrying the existence of Israel and calling for the destruction of its "Zionist regime," created a threatening atmosphere for the 25,000-person Jewish community. For instance, during the fifth annual "Conference in Support of the Palestinian Intifada," the president echoed his previous comment that Israel was a "cancerous tumor" that was impacting the entire world. On October 1, alongside the start of this conference, Khamenei announced the publication of his new book in which he states, "Israel is a country with no origin or provenance--a fake country, a false nation...Wherever evil Jews existed, they were gathered together [and sent] there to [Palestine]." Government officials continued to make anti-Semitic statements, organize events designed to deny the Holocaust, and sanction anti-Semitic propaganda. The government also limited distribution of nonreligious Hebrew texts and required Jewish schools to remain open on the Jewish Sabbath.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at 2009-2017.state.gov/j/tip/ ([//2009-2017.state.gov/j/tip/](https://2009-2017.state.gov/j/tip/)).

Persons with Disabilities

The law generally prohibits discrimination against persons with disabilities by government actors, with some notable exceptions. For example, the laws did not apply to private actors, and the electoral laws prohibit blind and deaf individuals from running for parliament. While the law provides for state-funded vocational education for persons with disabilities, according to domestic news reports, vocational centers were confined to urban areas and unable to meet the needs of the entire population. There are laws ensuring public accessibility concerning government-funded buildings, and new structures appeared to have high-level access for physically disabled individuals. There also were efforts to increase accessibility of historical sites. However, government buildings themselves remained largely inaccessible, and general building accessibility for persons with disabilities remained a widespread problem. There was limited access to information, education, and community activities by persons with disabilities in the country.

With respect to the prohibition of blind and deaf individuals running for the Majlis, the Shahrzad News reported on November 14 that 67 Majlis members requested permission to bring a floor debate on the issue, but their motion was denied.

The Welfare Organization of Iran is the principle governmental agency charged with protecting the rights of persons with disabilities.

National/Racial/Ethnic Minorities

The constitution grants equal rights to all ethnic minorities and allows for minority languages to be used in the media and in schools. In practice minorities did not enjoy equal rights, and the government consistently denied their right to use their language in school. The government disproportionately targeted minority groups, including Kurds, Arabs, Azeris, and Baluchis, for arbitrary arrest, prolonged detention, and physical abuse (see also section 1.e., Political Prisoners and Detainees). These groups reported political and economic discrimination, particularly in their access to economic aid, business licenses, university admissions, permission to publish books, and housing and land rights. The government blamed foreign entities, including a number of governments, for instigating some of the ethnic unrest.

There are between five and 11 million ethnic Kurds in the country, who have frequently campaigned for greater regional autonomy. There were two terrorist organizations inside the Kurdish province; however, they did not represent the majority of the Kurdish population. Nevertheless, the government persecuted the entire minority for criminal acts sponsored by the two organizations. According to a 2009 HRW report, the government used security laws, media laws, and other legislation to arrest and persecute Kurds solely for exercising their right to freedom of expression and association. The government reportedly banned Kurdish-language newspapers, journals, and books and punished publishers, journalists, and writers for opposing and criticizing government policies. Although the Kurdish language is not banned, schools did not teach it. Authorities suppressed legitimate activities of Kurdish NGOs by denying them registration permits or bringing spurious charges of security offenses against individuals working with such organizations. Kurds were not allowed to register certain names for their children in official registries.

There were several instances of Kurdish activists sentenced for political crimes during the year. For example, on January 31, the Revolutionary Court in Kermanshah sentenced Kaveh Ghassemi Kermanshahi, a journalist and human rights activist, to five years in prison. Kermanshahi was an executive member of the Kurdistan Human Rights Organization and the OMSC. He was also a member of the student organization Daftar Tahkim Vahdat. The court charged Kermanshahi with “acting against national security” and “propaganda against the regime.” His lawyer described his long sentence as “unprecedented.”

In mid-June the Saqqez Revolutionary Court, in Kurdistan Province, found Mohammad Moniri, a Kurdish teacher, guilty on charges of cooperating with opposition groups and propaganda against the regime. The court originally sentenced Moniri to five years in prison, but his sentence was reduced to six months. Moniri entered prison on June 19.

Foreign representatives of the Ahvazi Arabs of Khuzestan claimed their community of two to four million in the country’s southwest encountered oppression and discrimination, including torture and mistreatment of Ahvazi Arab activists and the lack of freedom to study and speak Arabic.

On April 15, authorities violently oppressed a protest organized by ethnic Arabs in the Khuzestan region. Security forces reportedly fired live rounds into the crowd. It was estimated that a dozen demonstrators were killed and scores more injured. The RSF reported that authorities arrested up to 97 protesters. The demonstrators were commemorating the sixth anniversary of a 2005 demonstration that security forces violently suppressed. The government insisted that the report was fabricated. On the same day, a representative from the Ahvazi Organization for the Defense of Human Rights, based in London, told HRW that, since April 15, security forces had “killed 48 innocent protesters, injured tens, and arrested hundreds of Ahvazis.” On April 18, Nobel Peace Prize laureate Shirin Ebadi wrote a letter about the incident to the UN high commissioner for human rights. According to Ebadi, hundreds of people in the city of Ahvaz had gathered for a peaceful demonstration against the government’s discrimination towards its Sunni minority. The country’s semiofficial news agency Fars reported that only one person had been killed during the protests.

On May 11, according to an official report from the Khuzestan district attorney, seven young Arabs had been executed in the preceding days in the town of Ahvaz. However, posts on Facebook reported that nine young Arab activists from Ahvaz had been executed. Official sources claimed that those executed were criminals dealing in drugs, although such claims often were leveled as justification to execute political activists from the Arab minority. The Arab minority in Ahvaz asked for the intervention of global human rights organizations.

Ethnic Azeris comprised approximately one-quarter of the country’s population, were well integrated into government and society, and included the supreme leader among their numbers. Nonetheless, Azeris complained that the government discriminated against them, banning the Azeri language in schools, harassing Azeri activists or organizers, and changing Azeri geographic names. Azeri groups also claimed a number of Azeri political prisoners had been jailed for advocating cultural and language rights for Azeris. The government charged several of them with “revolting against the Islamic state.”

According to the ICHRI, during the six-month period from March 21 to September 21, more than 320 cultural, political, women’s rights, and human rights activists were arrested in the Azeri provinces. Most of these arrests concerned the protests about the drying out of Lake Urmiya, one of the largest saltwater lakes in the world. According to international media reports, protesters, who claimed that the government did not act to save the lake partly due to its location in the minority Azeri province, chanted, “Long live Azerbaijan,” and “Urmiya is thirsty / Azerbaijan must rise up, otherwise it will lose.” As a result of these arrests, Azeri activists were beaten, flogged, tortured, fined, and expelled from university.

Iran Green Voice announced that in late May that a Revolutionary Court sentenced seven Azeri activists--Yunes Soleymani, Mahmud Fazli, Naim Ahmmadi, Aydin Khajehei, Sharam Radmehr, Yashar Karimi, and Hamideh Frajazade--to six months in prison for membership in the Azeri Party’s Central Committee. A six-month suspended sentence was given to activists Alireza Abdollahi, Behbud Gholizade, and Akbar Azad, for a five-year probation period. Another activist, Hassan Rahimi, was cleared on all counts after being held in solitary confinement for four months.

Local and international human rights groups alleged serious economic, legal, and cultural discrimination against the Baluch minority during the year. Baluch journalists and human rights activists faced arbitrary arrest, physical abuse, and unfair trials, often ending in execution.

On June 6, a revolutionary court in Baluchistan Province sentenced Sakhi Rigi to 20 years in prison on charges of “acting against national security” and “propaganda against the regime,” based on his blogging and other Internet activities relating to the government’s discriminatory treatment of the Baluch community.

Societal Abuses, Discrimination, and Acts of Violence Based on Sexual Orientation and Gender Identity

The law criminalizes consensual same-sex sexual activity. A man can be put to death for same-sex sexual acts if he is of legal age, of sound mind, and engaged of his own free will. The Special Protection Division, a volunteer unit of the judiciary, monitored and reported on “moral crimes,” including same-sex sexual acts. According to a December 2010 HRW report, security forces used discriminatory laws to harass, arrest, and detain individuals they suspected of being gay. In some cases security forces raided houses and monitored Internet sites for information on LGBT individuals. Those accused of sodomy often faced summary trials, and evidentiary standards were not always met. The punishment of a non-Muslim gay man or lesbian was harsher if the gay man or lesbian’s partner was Muslim. Punishment for same-sex sexual activity between men was more severe than for such conduct between women.

During the year there was an increase in the frequency of charges of homosexuality against individuals on death row or those executed. However, because such persons were generally convicted on a number of different charges and because of the lack of due process, it was unclear in most cases whether such charges of homosexuality were the basis for the executions.

On September 4, authorities at Karoun prison in Ahvaz Province executed by hanging three individuals convicted of sodomy. While the circumstances of the case remained unclear at year’s end, the fact that they were executed on sodomy charges alone, and not sodomy by coercion or rape, which was normally how sodomy was charged, was significant. It was also the first case in many years in which the only declared charge was sodomy and not combined with other criminal acts, such as rape and armed robbery or national security crimes.

ICAS reported that two young men, Ayub and Mosleh, ages 20 and 21, were in danger of execution by stoning in the city of Piranshahr in the province of Kurdistan. The group said the men filmed themselves engaging in same-sex sexual activity in a video that included pictures of President Ahmadinejad and that government officials discovered that video. Their whereabouts at the end of the year remained unknown.

According to a June 10 IHRDC report, in 2007 authorities in Isfahan arrested Matin Yar (a pseudonym) at age 19, along with several of his friends, for homosexual activity. Yar described officials repeatedly beating and torturing him during his detention, including hanging him upside down on a metal rod and using batons, whips, and electric shock. Yar stated his nose and ribs were broken as a result of the beatings. During a second period of detention, Yar said he was subjected to mock executions at Isfahan on three or four different occasions. After sentencing, Yar was sent to Dastgerd Prison, where he claimed prison authorities raped him several times.

The government censored all materials related to LGBT issues. In September President Ahmadinejad called same-sex sexual activity a “despicable act...that is dirty and harmful to humanity.” In January he was quoted as stating, “Homosexuality means the divorce of humanity from its integrity.” During his official response to the UNHRC, President Ahmadinejad categorically refused to answer all six questions regarding the LGBT situation in his country, stating only that the LGBT issue is “beyond the mandate of the International Covenant on Civil and Political Rights.” The supreme leader referred to same-sex sexual conduct as a “shameful act.”

The law defines transgender persons as mentally ill, encouraging them to seek medical help in the form of gender-reassignment surgery. The government provided grants of as much as 4.5 million toman (\$4,500) and loans of as much as 5.5 million toman (\$5,500) for transgender persons willing to undergo gender reassignment surgery. Human rights activists and

NGOs reported that some members of the gay and bisexual community were pressured to undergo gender reassignment surgery to avoid legal and social consequences in the country.

The size of the LGBT community was unknown, as many individuals feared identifying themselves. There were active LGBT NGOs in the country, but most activities to support the LGBT community took place outside the country. According to a HRW report, family members threatened and abused many young gay men, who also faced harassment from religious scholars, schools, and community elders. Some persons were expelled from university for allegations of same-sex sexual activity. The HRW report also alleged that Basij forces attempted to entrap or arrest persons engaged in same-sex sexual conduct.

Other Societal Violence or Discrimination

Persons with HIV/AIDS reportedly faced discrimination in schools and workplaces.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The constitution provides for freedom of association, but neither the constitution nor the labor code guarantee trade union rights. The labor code states workers may establish an Islamic labor council or a guild at any workplace, but the rights and responsibilities of these organizations fall significantly short of international standards for trade unions. In workplaces where an Islamic labor council has been established, no other form of worker representation is permitted. The law requires prior authorization for organizing and concluding collective agreements, and it does not provide for the right to strike. Strikes are prohibited in the public sector. Private sector workers may conduct “peaceful” campaigns within the workplace. The labor code does not apply to establishments with fewer than five employees.

Freedom of association and the right to collective bargaining were not respected in practice. The government severely restricted freedom of association and interfered in worker attempts to organize. The government and the judiciary imprisoned and aimed to silence labor activists.

The Interior Ministry, Ministry of Labor, and Islamic Information Organization determined labor councils’ constitutions, operational rules, and election procedures. Workers’ House remained the only officially authorized national labor organization; it served primarily as a conduit for government control over workers. The leadership of Workers’ House oversaw and coordinated activities with Islamic labor councils in industrial, agricultural, and service organizations comprising more than 35 employees. During the year the government pressured workers to join the government-sponsored councils. According to the ICHRI, the labor councils, which consisted of representatives of workers and a representative of management, were essentially management-run unions that undermined workers’ efforts to maintain independent unions. However, the councils were able to block layoffs and dismissals. Human rights organizations reported employers routinely fired labor activists for trade union activities. There was no representative workers’ organization for workers who are noncitizens.

According to international media reports, security forces continued to respond with arbitrary arrests and violence to workers’ attempts to organize or conduct strikes. Strikes and worker protests often prompted a heavy police response, and security forces routinely monitored major worksites. On February 7, taxi drivers in the northern city of Babol went on strike to protest low fares set by the government. Although security and intelligence forces appeared at the protest site, the workers persisted with their strike. At the end of the four-hour protest, the ICHRI reported that police temporarily detained and interrogated a number of workers.

On June 10, AI released a detailed report that underscored the harsh treatment of independent trade union activists speaking out against the oppression of trade unions in the country. On October 17, the Iranian Independent Workers Union announced that security forces arrested Ayat Niafar, the spokesperson for the Follow-up Committee to Form Workers Organizations, also known as the Committee to Pursue the Establishment of Trade Unions, at a metro stop in Tehran and took him to Evin Prison, where he remained at year’s end.

There were developments in several cases from previous years. According to Education International, of which the Iranian Teachers Trade Association (ITTA) is an affiliate, and other sources, government authorities prevented the ITTA from holding meetings and continued to harass and detain its members. On January 12, a court confirmed the six-year sentence of ITTA board member Rasoul Bodaghi for “assembly and conspiracy with the intent of committing national security crimes and antiregime propaganda.” On May 22, Bodaghi and several other political prisoners began a hunger strike to protest their treatment. Five days after he began the hunger strike, he was transferred to solitary confinement. At year’s end he remained in prison.

In April a revolutionary court summoned several members of the ITTA for questioning. The head of the Mashad branch, Hashem Khastar, was not released at the end of his two-year prison term for union activities. Instead, as his family and friends waited for him at the prison gates on July 26, they learned that authorities had brought him back to court and tried him on the new charge of “creating public anxiety,” according to the ICHRI. Many of the association’s leaders and prominent members—including secretaries general Alireza Hashemi and Ali Akbar Baghani, Tehran spokesperson Mahmoud Beheshti-Langaroudi, Tehran branch member Mahmoud Bagheri, and Kurdistan branch member Mokhtar Asadi—remained in prison during the year on charges of “propaganda against the regime” for activities they had planned on International Workers’ Day in May 2010. All of the imprisoned spent time in solitary confinement. They were awaiting a court hearing at year’s end.

On June 2, authorities released bus-driver syndicate leader Mansour Ossanloo on a prison furlough, which was extended. At year’s end he remained out on furlough and could be called back to jail at any time. He was originally sentenced in 2007 for trade union activities. According to international media, several other transportation unionists remained in prison for trade union activities, including Mansour Ossanloo’s brother, Afshin Ossanloo, who was arrested by plainclothes officers in January at Tehran’s southern bus terminal, and Reza Shahabi. Shahabi went on hunger strike several times during the year and was hospitalized more than once. Another bus syndicate leader, Ebrahim Mahadi, had been imprisoned since 2008 but was freed December 1 only to be rearrested and sent back to prison on December 7.

On November 12, Ali Nejati, a board member of the Haft Tapeh Sugar Cane Workers’ Syndicate, began a one-year sentence in Dezfoul prison for his trade union activities. He had already served six months in 2010 on the same charges and had been dismissed from work.

b. Prohibition of Forced or Compulsory Labor

The labor code prohibits all forms of forced or compulsory labor. However, such practices occurred in the construction and agricultural sectors, primarily among Afghan adult males. Family members and others forced children to work.

See also the Department of State’s Trafficking in Persons Report at [2009-2017.state.gov/j/tip](http://2009-2017.state.gov/j/tip/2009-2017.state.gov/j/tip) ([//2009-2017.state.gov/j/tip](http://2009-2017.state.gov/j/tip)).

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits employment of minors younger than 15 and places restrictions on employment of minors younger than 18, such as prohibitions on hard labor or night work; however, the law permits children to work in agriculture, domestic service, and some small businesses from the age of 12. The government did not adequately monitor or enforce laws pertaining to child labor, and child labor was a serious problem.

According to government sources, 600,000 children worked in the country during the year. Approximately 360,000 children between the ages of 10 and 14 worked full time and another 380,000 children worked in seasonal employment. Family poverty, insufficient economic growth, and uneven distribution of wealth were the sources of the problem, according to government news reports. There were reportedly significant numbers of children—primarily Afghan, but also Iranian—working as street vendors in major urban areas. Traffickers also exploited children for involuntary servitude as beggars and laborers.

Also see the Department of Labor’s *Findings on the Worst Forms of Child Labor* at www.dol.gov/ilab/programs/ocft/tda.htm (<http://www.dol.gov/ilab/programs/ocft/tda.htm>).

d. Acceptable Conditions of Work

In March the government increased the minimum wage to 303,048 toman (approximately \$303) per month. According to a May report, the nationwide average income level below which a family with 3.7 members was considered to be living in poverty was 653,000 toman (\$653) a month. In Tehran the poverty income level was 813,000 toman (\$813) a month.

The law establishes a maximum six-day, 48-hour workweek with a weekly rest day (normally Friday), at least 12 days of paid annual leave, and several paid public holidays. Any hours worked above this entitles a worker to overtime. The law mandates a payment of 40 percent above the hourly wage to employees for any accrued overtime. Employees must consent to work the overtime; it is not compulsory under the law. However, the law does not fully cover workers in workplaces with fewer than 10 workers, nor does it apply at all to those in workplaces with fewer than five workers, to noncitizens, or to any workers in export processing zones. Afghan workers, especially those working illegally, were subject to abusive working conditions, including below minimum wage remuneration, nonpayment of wages, and compulsory overtime. Such informal employment was common in construction, agriculture, transportation, retail, and the textile industry.

According to the International Alliance in Support of Workers in Iran, approximately 80 percent of workers employed by public and private companies were on temporary contracts, including teachers. Workers on temporary contracts can be dismissed at any time without reason. Low wages and the lack of job security due to contracting practices continued to be major drivers of worker strikes and protests, notably in the oil and petrochemical industry.

Information about labor inspection and labor law enforcement was difficult to obtain. While the law provides for occupational health and safety standards, these did not appear to be effectively enforced, and workers were excluded from the process. Industrial accidents were commonplace, and the government did not appear to conduct investigations into them. On November 15, the Iranian Workers' Solidarity Network, citing ISNA official figures, reported 778 workplace deaths during the first six months of the year. Labor organizations inside and outside the country alleged that hazardous work environments resulted in thousands of worker deaths annually. It was unknown whether workers could remove themselves from hazardous situations without risking the loss of employment.

On December 11, an explosion at the Ghadir steel smelter in the city of Yazd killed 16 workers, including foreign nationals, and injured at least three others. The blast reportedly was caused by ammunition in a delivery of scrap metal. On May 24, a massive explosion and fire at a new oil refinery in Abadan killed and injured an unknown number of workers.

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